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**DECLARATION OF COVENANTS AND RESTRICTIONS FOR
PALMETTO PARK WOODS HOMEOWNERS' ASSOCIATION, INC.**

This DECLARATION OF COVENANTS AND RESTRICTIONS FOR PALMETTO PARK WOODS (the "Declaration") is made this 2nd day of December, 1988, by GSG Associates, a Florida general partnership, hereinafter called "Developer", which declares that the real property described in Article II, hereinafter called "Palmetto Park Woods", which is owned by Developer, is and shall be held, transferred, sold, conveyed and occupied subject to the covenants, restrictions, easements, charges and liens (sometimes referred to as "Covenants and Restrictions") set forth below.

I. DEFINITIONS

The following words, when used in this Declaration (unless the context shall prohibit), shall have the following meanings:

A. "Association" shall mean and refer to Palmetto Park Woods Homeowners' Association, Inc., a Florida corporation not for profit. This Declaration is the Declaration of Covenants and Restrictions to which the Articles of Incorporation (the "Articles") and By Laws (the "By Laws") of the Association make reference. Copies of the Articles filed with the Florida Secretary of State and the By Laws are attached hereto and made a part hereof as Exhibits A and B respectively.

B. "Developer" shall mean and refer to GSG Associates, a Florida general partnership, and its successors or assigns.

C. "Palmetto Park Woods" or "Property" shall mean and refer to all such existing properties and additions thereto as are subject to this Declaration or any supplemental Declaration under the provisions of Article II hereof, and shall include the real property described in Section 1 of Article II below.

D. "Lot" shall mean and refer to any lot or other parcel with any and all improvements thereon, in Palmetto Park Woods platted in the Public Records of Palm Beach County, Florida, on which a residential structure could be constructed, whether or not one has been constructed.

E. "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot which is part of the Property, including contract sellers (but not contract purchasers) and Developer.

F. "Common Area" shall mean and refer to all real and/or personal property which the Association and/or the Developer owns, including, without limitation, the streets, easements and tracts dedicated or to be dedicated to the Association pursuant to the Plat of Palmetto Park Woods, or in which the Association and/or the Developer has an interest (whether or not said real and/or personal property is within the boundaries of Palmetto Park Woods) including, without limitation, a right of use, for the common use and enjoyment of the members of the Association. The use of the Common Area shall be restricted to recreational purposes and the purposes set forth in the Plat of Palmetto Park Woods.

II. PROPERTY SUBJECT TO THIS DECLARATION: ADDITIONS THERETO, DELETIONS THEREFROM

Section 1. LEGAL DESCRIPTION. The legal description of the real property which is and shall be held, transferred, sold, conveyed and occupied subject to this Declaration:

Tracts 100, 101 and 102, Block 78, PALM BEACH FARMS PLAT #3, according to the Plat thereof recorded in Plat Book 2, Pages 45 through 54 of the Public Records of Palm Beach County, Florida, less the south 140 feet thereof.

The Association may be expanded in phases. The Developer has the right, but not the obligation, to add phases to the Association.

Section 2. PLATTING AND SUBDIVISION RESTRICTIONS. The Developer shall be entitled at any time and from time to time, to plat and/or replat all or any part of the Property, and to file subdivision restrictions, and/or amendments thereto with respect to any undeveloped portion or portion(s) of the Property.

Section 3. ADDITIONAL LAND. Developer may, but shall have no obligation to, add at any time or from time to time to the scheme of this Declaration additional lands or, with the consent of Palm Beach County, such consent not to be unreasonably delayed or withheld, withdraw at any time or from time to time portions of the land hereinabove described, provided only that (a) any lands from time to time added to the scheme of this Declaration shall be contiguous to property then subject to the scheme of this Declaration, (b) any portion of it shall, at the time of addition to the scheme of this Declaration, be platted as a single family residential lot(s), (c) upon addition of any lands to the scheme of this Declaration, the owners of property therein shall be and become subject to this Declaration, including assessment by the Association for their pro-rata share of Association expenses, and (d) neither the addition or withdrawal of lands as aforesaid, shall without the joinder or consent of a majority of the Members of the Association, materially increase the pro-rate share of Association expenses payable by the owners of property subject to this Declaration prior to such addition or remaining subject hereto after such withdrawal. The addition or withdrawal of lands aforesaid shall be made and evidenced by filing in the Public Records of Palm Beach County, Florida, a supplementary Declaration with respect to the lands to be added or withdrawn. Developer reserves the right to amend and supplement this Declaration without the consent or joinder of the Association or of any owner and/or mortgagee of land in Palmetto Park Woods.

III PROPERTY RIGHTS

Section 1. OWNERS' EASEMENTS OF ENJOYMENT. Every Owner shall have a right of use and an easement of enjoyment in and to the Common Area which shall be appurtenant, and shall pass with the title, to every Lot subject to the following:

- A. The right of the Association to take such steps as are reasonably necessary to protect the Common Area against foreclosure;
- B. All provisions of this Declaration, any plat of all or any parts of the Property, and the Articles and By Laws of the Association;
- C. Rules and regulations governing use and enjoyment of the Common Areas adopted by the Association;
- D. Restrictions contained on any and all plats of all or any part of the Common Area or filed separately with respect to all or any part or parts of the Property.

Section 2. EASEMENTS APPURTENANT. The easements provided in Section 1 shall be appurtenant to and shall pass with the title to each Lot.

Section 3. UTILITY EASEMENTS. Public utilities may be installed underground in the Common Areas when necessary for the service of the Property or additional lands which Developer may purchase contiguous to the Property, but all use of utility

easements shall be in accordance with the applicable provisions of this Declaration.

Section 4. PUBLIC EASEMENTS. Fire, police, health, sanitation and other public service personnel and vehicles shall have a permanent and perpetual easement for ingress and egress over and across the Common Areas:

Section 5. EASEMENT FOR UNINTENTIONAL AND NON-NEGLIGENT ENCROACHMENTS. If any other building or improvement shall encroach upon any portion of the Common Areas or upon an easement by reason of original construction or by the non-purposeful or non-negligent act of Developer or any other owner of such building or improvement, then an easement for such encroachment shall exist so long as the encroachment exists.

Section 6. ADDITIONAL EASEMENT. The Developer (during any period in which the Developer has any ownership interest in the Property) and the Association shall each have the right to grant such additional electric, telephone, gas, sprinkler, irrigation, cable television or other easement, and to relocate any existing easement in any portion of the Property and to grant access easements and to relocate any existing access easements in any portion of the Property as the Developer or the Association shall deem necessary or desirable, for the proper operation and maintenance of the Property, or any portion thereof, or for the general health or welfare of the Owners or for the purpose of carrying out any provisions of this Declaration; provided that such easements or the relocation of existing easements will not prevent or unreasonably interfere with the use of the Lots for dwelling purposes.

Section 7. ASSOCIATION EASEMENTS. For the purpose solely of performing its obligations under the provisions of this Declaration, the Association, through its duly authorized officers, agents, employees or independent contractors, shall have the right, after reasonable notice to the Owner, to enter upon any Lot at reasonable hours of any day except Sunday. In the event of an emergency, such right of entry shall exist without notice at any hour of any day, including Sunday. Each Owner hereby grants to the Association, its duly authorized officers, agents, employees or independent contractors such easements for ingress and egress, across the Lots and through improvements constructed upon the Lots, as may be reasonably necessary to effect and perform its obligations under the provisions of this Declaration. In addition, the owner(s) of adjoining property (not within the Property) may grant the Association, its duly authorized officers, agents, employees or independent contractors, such easements for ingress and egress across its properties to effect and perform its duties. In such event, the Association shall indemnify the adjoining property owner(s) for any damage due to injury to the easement areas caused by the use thereof or access.

Section 8. STREET LIGHTING. Street lighting poles and fixtures may be installed by the Association within the Common Areas and the Association shall have the obligation for maintenance of such street lighting facilities from the date of recording this Declaration or from the date of installation of the street lighting, whichever occurs first. In the event the Developer, in its sole discretion, undertakes the obligation on behalf of the Association to install such street lighting, Developer shall be entitled to all rebates or refunds of the installation charges and the Association hereby assigns such rebates or refunds to Developer. Should Developer install the street lighting, if any rebates or payments are made by Florida Power and Light Company to the Association for reimbursement for the installation fees for the poles and fixtures, such rebates or payments shall be forthwith paid by the Association to Developer.

IV MEMBERSHIP AND VOTING RIGHTS IN THE ASSOCIATION

Section 1. MEMBERSHIP. Every person or entity who is a record fee simple Owner of a Lot, including the Developer at all times as long as it owns any part of the Property subject to this Declaration, shall be a member of the Association, provided that any

such person or entity who holds such interest only as security for the performance of an obligation shall not be a member. Membership shall be appurtenant to, and may not be separated from, ownership of any Unit which is subject to assessment.

Section 2. CLASSES AND VOTING. The Association shall have such classes of membership, which classes shall have such voting rights, as are set forth in the Articles of the Association.

Section 3. MERGER OR CONSOLIDATION. Upon a merger or consolidation of any association referred to herein with any other association, the properties, rights and obligations of such association may, by operation of law, be transferred to another surviving or consolidated association or, alternatively, the properties, rights and obligations of another association may, by operation of law, be added to the properties, rights and obligations of any association as a surviving corporation pursuant to a merger. The surviving or consolidated association may administer the covenants and restrictions established by this Declaration within the Property together with the covenants and restrictions established upon any other property as one scheme. No such merger or consolidation, however, shall effect any revocation, change or addition to the covenants established by this Declaration within the Property.

Section 4. TERMINATION OF THE ASSOCIATION. In the event the Association is terminated or shall no longer continue to exist for any reason whatsoever, or in the event of dissolution of the Association for whatever reason other than merger or consolidation as provided for herein, any Owner may petition the Circuit Court of the Fifteenth Judicial Circuit of the State of Florida for the appointment of a receiver to manage the affairs of the Association and to make such provisions as may be necessary for the continued management of the affairs of the dissolved Association, the Property and Common Areas.

V. COVENANTS FOR MAINTENANCE ASSESSMENTS

Section 1. CREATION OF THE LIEN AND PERSONAL OBLIGATION OF ASSESSMENTS. The Developer, for each Lot owned by it within Palmetto Park Woods, hereby covenants, and each Owner of any Lot (by acceptance of a deed therefor, whether or not it shall be so expressed in any such deed or other conveyance) including any purchaser at a judicial sale, shall hereafter be deemed to covenant and agree to pay to the Association any annual assessments or charges and any special assessments for capital improvements or major repair; such assessments to be fixed, established and collected from time to time as hereinafter provided. All such assessments, together with interest thereon from due date at the highest rate allowed by law and costs of collection thereof (including attorney's fees), shall be a charge on the land and shall be a continuing lien (the "Lien") upon the Lot(s) against which each such assessment is made and shall be the personal obligation of the Owner. No Owner may waive or otherwise escape liability for the assessments provided for herein by non-use of the Common Area or abandonment.

Section 2. PURPOSE OF ASSESSMENTS. The annual and special assessments levied by the Association shall be used exclusively for the purpose of promoting the recreation, health, safety and welfare of the residents in Palmetto Park Woods and in particular for the improvement and maintenance of the Common Area and of any easement in favor of the Association, including, but not limited to, the cost of taxes on the Common Area, insurance, labor, equipment, materials, management, maintenance and supervision thereof, as well as for such other purposes as are permissible activities of the Association and undertaken by the Association.

Section 3. MAXIMUM ANNUAL ASSESSMENTS. Except as hereinafter provided, the annual assessment, excluding any special assessment for capital improvements or major repair, shall in no event exceed Two Thousand Four Hundred and No/100 U.S. Dollars (\$2,400.00) per Lot per annum. For each calendar year after the year of recordation of this Declaration in the Public Records of Palm

Beach County, Florida, the annual assessment limit will be adjusted on the basis of any increase in the cost of living as reported in the Consumer Price Index, All Items and Major Group Figures for All Urban Consumers (1976=100) (the "Index") published by the Bureau of Labor Statistics (the "Bureau") of the United States Department of Labor, between the level in effect (the "Base Level") on January 1, of the year of the recordation, and the level in effect on January 1 of such year (the "Adjustment Level"). The adjusted assessment limit for each year shall be computed by multiplying the sum of Two Thousand Four Hundred and No/100 U.S. Dollars (\$2,400.00) by a fraction, the numerator of which shall be the Adjustment Level, and the denominator of which shall be the Base Level. Stated as a mathematical formula, the adjusted assessment limit shall be computed as follows:

Adjusted Assessment Limit =

$$\frac{\text{Adjustment Level}}{\text{Base Level}} \times \$2,400.00$$

If the compilation and/or publication of the Index shall be transferred to any other department, bureau or agency of the United States Government, or if the Bureau shall adopt a successor Index, the Index published by such successor department, bureau or agency shall be adopted and used as a standard for computing adjustments to the assessment limit.

The Board of Directors of the Association (the "Board") shall fix the assessments, which shall be in amounts determined in accordance with the projected financial needs of the Association, as to which the decision of the Board shall be dispositive. By the vote of a majority of the members of the Board the maximum amounts of the assessments may be varied from the amounts hereinabove set forth.

Section 4. UNIFORM RATE OF ASSESSMENT. All regular and special assessments shall be at a uniform rate for each Lot in Palmetto Park Woods. Provided, however, during the period in which the Developer owns any Lot in Palmetto Park Woods, it shall be exempt from assessment, at its sole discretion, as long as it agrees to pay any cash operating deficit of the Association.

Section 5. SPECIAL ASSESSMENTS FOR CAPITAL IMPROVEMENTS AND MAJOR REPAIRS. In addition to any annual assessments, the Association may levy in any assessment year a special assessment, applicable to that year only, for the purpose of defraying, in whole or in part, the cost of any construction, reconstruction, unexpected repair or replacement of a capital improvement as approved by the Board, including the necessary fixtures and personal property related thereto, provided that any such assessment shall have the assent of a majority of the members of the Board.

Section 6. DATE OF COMMENCEMENT OF ANNUAL ASSESSMENTS: DUE DATE. The assessments for which provision is herein made shall commence on the dates (which shall be the first day of a month) fixed by the Board to be the date of commencement. The due date of any assessment shall be fixed in the resolution authorizing such assessments, and any such assessment shall be payable in advance in monthly, quarterly, semi-annual or annual installments, as determined by the Board.

Section 7. DUTIES OF THE BOARD OF DIRECTORS. The Board shall fix the date of commencement and the amount of, the assessment against each Lot and other portions of the Property, for each assessment period at least thirty (30) days in advance of such date or period and shall, at that time, prepare a roster of the Lots and assessments applicable thereto which shall be kept in the office of the Association and shall be open to inspection by any Owner. Written notice of the assessment shall be sent to every Owner subject thereto not later than seven (7) days after fixing of the date of commencement thereof.

The Association shall, upon demand at any time, furnish to any Owner liable for said assessment a certificate in writing signed by an officer of the Association, setting forth whether said

assessment has been paid. Such certificate shall be conclusive evidence of payment of any assessment therein stated to have been paid.

Section 8. EFFECT OF NON-PAYMENT OF ASSESSMENT: THE LIEN, THE PERSONAL OBLIGATION, REMEDIES OF ASSOCIATION. The Lien of the Association shall be effective from and after recording, in the Public Records of Palm Beach County, Florida, a claim of lien identifying the Lot encumbered thereby, the name of the Owner, the amount and the date when due. Such claim of lien shall include only assessments which are due and payable when the claim of lien is recorded, plus interest, costs, attorneys' fees, advances to pay taxes and prior encumbrances and interest thereon, all as above provided. Such claims of lien shall be signed and verified by an officer or agent of the Association. Upon full payment of all sums secured by such claim of lien, the same shall be satisfied of record.

If the assessment is not paid within thirty (30) days after the delinquency date, which shall be set by the Board, the assessment shall bear interest from the date of delinquency at the highest rate allowed by law, and the Association may at any time thereafter bring an action to foreclose the Lien against the Lot(s), in like manner as a foreclosure of a mortgage on real property, and/or a suit on the personal obligation against the Owner(s) and there shall be added to the amount of such assessment the cost of preparing and filing the complaint in such action (including reasonable attorneys' fees and title search expenses), and in the event a judgment is obtained, such judgment shall include interest on the assessment as above provided and reasonable attorneys' fees to be fixed by the Court together with the costs of the action.

Section 9. SUBORDINATION OF THE LIEN TO MORTGAGES. The Lien of the assessments provided for herein made, as well as in any other Article of this Declaration shall be subordinate to the lien of any first mortgage to a federal or state chartered bank, mortgage company, life insurance company, federal or state savings and loan association or real estate investment trust or other similar mortgagee generally known as an institutional mortgagee, which is perfected by recording prior to the recording of a claim of lien for any such unpaid assessments by the Association. Such subordination shall apply only to the assessments which have become due and payable prior to a sale or transfer of such Lot by deed in lieu of foreclosure of such Lot or pursuant to a decree of foreclosure of such mortgage; provided however, any such Lot shall be liable, following such sale, for a pro rata share of any unpaid assessments against such Lot accruing prior to such sale, in common with all other Property. No sale or other transfer shall relieve any Lot from liability for any assessments thereafter becoming due, nor from the Lien of any such subsequent assessment. The written opinion of either the Developer or the Association that the Lien is subordinate to a mortgage shall be dispositive of any question of subordination.

Section 10. EXEMPT PROPERTY. The Board shall have the right to exempt any of the Property subject to this Declaration from the Assessments, charge and Lien created herein provided that such part of the Property exempted is used (and as long as it is used) for any of the following purposes:

- A. Any easement or other interest therein dedicated and accepted by the local public authority and devoted to public use;
- B. All of the Common Area as defined in Article I hereof;
- C. Any of the Property exempted from ad valorem taxation by the laws of the State of Florida, to the extent agreed to by the Association.
- D. Any easement or other interest dedicated or conveyed to not for profit corporations for the use and benefit of owners in the planned unit development of which the Property is a part.

Notwithstanding any provisions herein, no land or improvements devoted to residential dwelling or related use shall be exempt from said assessments, charges or Lien.

VI EXTERIOR MAINTENANCE ASSESSMENT

Section 1. EXTERIOR MAINTENANCE. The Association shall provide maintenance upon the Common Area, and the Association may provide upon any Lot requiring same, when necessary in the opinion of the Board to preserve the beauty, quality and value of the neighborhood, maintenance including paint, repair, roof repair and replacement, gutters, downspouts, exterior building surfaces and yard cleanup and/or maintenance.

Section 2. ASSESSMENT OF COST. The cost of such maintenance shall be assessed against the Lot or Lots upon which such maintenance is performed or, in the opinion of the Board benefitting from same. The assessment shall be apportioned among the Lots involved in the manner determined to be appropriate by the Board. If no allocation is made, the assessment shall be uniformly assessed against all of the Lots in the affected area. The exterior maintenance assessments shall not be considered a part of the annual or special assessments. Any exterior maintenance assessment shall be a Lien on the Lot(s) and the personal obligation of the Owner(s) and shall become due and payable in all respects, together with interest and fees for the cost of collection, as provided for the other assessments of the Association, and shall be subordinate to mortgage liens to the extent provided by Section 9 of Article V herein.

Section 3. ACCESS. For the purpose of performing the maintenance authorized by this Article, the Association, through its duly authorized officers, agents or employees, shall have the right, after reasonable notice to the Owner, to enter upon any Lot(s) or the exterior of any improvements thereon at reasonable hours on any day except Saturday or Sunday. In the case of emergency repairs, access will be permitted at any time with only such notice, as under the circumstances, is practically affordable.

VII ARCHITECTURAL CONTROL

Section 1. NECESSITY OF ARCHITECTURAL REVIEW AND APPROVAL. No landscaping, improvement or structure of any kind, including without limitation, any building, fence, wall, swimming pool, tennis court, screen enclosure, sewer, drain disposal system, decorative building, landscape device or object, or other improvement shall be commenced, erected, placed or maintained upon any Lot nor shall any addition, change or alteration therein or thereof be made, unless and until the plans, specifications and location of the same shall have been submitted to and approved in writing by the Association. All plans and specifications shall be evaluated as to harmony of external design and location in relation to surrounding structures and topography and as to conformance with the Architectural Planning Criteria of the Association, a copy of which are attached hereto as Exhibit C, as the same may from time to time be amended. It shall be the burden of each Owner to supply completed plans and specifications to the Association or Architectural Review Board thereof and no plan or specification shall be deemed approved unless a written approval is granted by the Association or Architectural Review Board thereof to the owner submitting same. Any change or modification to approved plans shall not be deemed approved unless a submittal and written approval thereof is granted. Provided however, the Developer shall be exempt from review and approval with respect to any property it may own, from time to time. Provided further, the review and approval rights as contained herein are intended to control aesthetics and the maintenance of community standards, not to insure compliance with any contract, code, ordinance, rule, regulation or law. Each Owner expressly acknowledges that the Developer, Association and ARB shall incur no liability, express or implied, with respect to conformance with any contract, code, ordinance, rule, regulation or law.

Section 2. ARCHITECTURAL REVIEW BOARD. The architectural review and control functions of the Association shall be administered and performed by the Architectural Review Board (the "ARB"), which shall consist of three (3) members who need not be members of the Association. The Developer shall have the right to appoint all of the members of the ARB, or such lesser number as it may choose, as long as it owns at least one (1) Lot in Palmetto Park Woods. Members of the ARB as to whom Developer may relinquish the right to appoint, and all members of the ARB after Developer no longer owns at least one (1) Lot in Palmetto Park Woods shall be appointed by, and shall serve at the pleasure of the Board. At any time that the Board has the right to appoint one (1) or more members of the ARB, the Board shall endeavor to appoint at least one (1) architect or building contractor thereto. A majority of the ARB shall constitute a quorum to transact business at any meeting of the ARB and the action of a majority present at a meeting at which quorum is present shall constitute the action of the ARB. Any vacancy occurring on the ARB because of death, resignation, or other termination of service of any member thereof shall be filled by the Board; except that Developer, to the exclusion of the Board, shall fill any vacancy created by the death, resignation, removal or other termination of services of any member of the ARB appointed by Developer.

Section 3. POWERS AND DUTIES OF THE ARB. The ARB shall have the following powers and duties:

A. To recommend, from time to time, to the Board modification and/or amendments to the Architectural Planning Criteria. Any modification or amendment to the Architectural Planning Criteria shall be consistent with the provisions of this Declaration, and shall not be effective until adopted by a majority of the members of the Board at a meeting duly called and noticed at which a quorum is present and voting. Notice of any modification or amendment to the Architectural Planning Criteria, including a verbatim copy of such change or modification, shall be delivered to each member of the Association; provided that, the delivery to each member of the Association of notice and a copy of any modification or amendment to the Architectural Planning Criteria shall not constitute a condition precedent to the effectiveness or validity of such change or modification.

B. To require submission to the ARB of two (2) complete sets of all plans and specifications, and a complete color palette, for any improvement or structure of any kind, including without limitation, any building, fence, wall, swimming pool, tennis court, enclosure, sewer, drain, disposal system, decorative building, landscape device or object, or other improvement, the construction or placement of which is proposed upon any Lot in Palmetto Park Woods, signed by the Owner of the Lot and contract vendee, if any. The ARB may also require submission of samples of building materials proposed for use on any Lot, and may require such additional information as reasonably may be necessary for the Board to completely evaluate the proposed structure or improvement in accordance with this declaration and the Architectural Planning Criteria.

C. To approve or disapprove any improvement or structure of any kind, including without limitation, any building, fence, wall, swimming pool, tennis court, screen enclosure, sewer, drain disposal system, decorative building, landscape device or object, or other improvement or change or modification thereto, the construction, erection, performance or placement of which is proposed upon any Lot in Palmetto Park Woods and to approve or disapprove any exterior additions, changes, modifications or alterations therein or

thereon. All decisions of the ARB shall be submitted in writing to the Board, and evidence thereof may, but need not be, made by a certificate, in recordable form, executed under seal by the president or any vice president of the Association. Any party aggrieved by a decision of the ARB shall have the right to make a written request to the Board, within thirty (30) days of such decision, for a review thereof. The determination of the Board upon reviewing any such decision shall in all events be dispositive.

D. To adopt a schedule of reasonable fees for processing requests for ARB approval of proposed improvements. Such fees, if any, shall be payable to the Association, in cash, at the time that plans and specifications are submitted to the ARB.

E. The Architectural Planning Criteria is intended as a guideline in which adherence shall be required by each Owner in Palmetto Park Woods; provided, however, the ARB shall have the express authority to waive any requirement set forth in the Architectural Planning Criteria if, in its professional opinion, it deems such waiver is in the best interests of the community and the deviation requested is compatible with the character of Palmetto Park Woods. A waiver shall be evidenced by an instrument signed and executed by the president and secretary of the Association upon unanimous approval of the ARB.

VIII RESTRICTIONS

Section 1. RESIDENTIAL USE. The Property subject to these Covenants and Restrictions may be used for residential living units and for no other purpose. No business or commercial building may be erected on any Lot and no business may be conducted on any part thereof. Provided however, a sales model shall not be deemed a commercial building. No building or other improvements shall be erected upon any Lot without prior ARB approval thereof as elsewhere herein provided. No Lot shall be divided, subdivided or reduced in size unless each divided or subdivided portion thereof is consolidated with one or more contiguous Lots under one ownership; provided that, if the ARB shall first have specifically approved the same, a Lot may be subdivided for the purpose of increasing the size of only one (1) contiguous Lot so long as the portion of the divided Lot which remains unconsolidated as a single Lot shall be total area at least ninety-five percent (95%) as large as the then smallest Lot (in area) in Palmetto Park Woods. In the event of the subdivision and consolidation of any Lot(s) as aforesaid, the obligation for Association expenses attributable to the subdivided Lot(s) shall be and become proportionately attributable and chargeable to the contiguous Lot(s), and the Owner(s) thereof, to and with which all portions of the divided or subdivided Lot(s) becomes consolidated. Further, any limitations on residence size imposed by law or by the Architectural Planning Criteria shall apply to the consolidated Lot(s) as if the same were a single lot. In the event that one or more Lots are developed as a unit the provision of these covenants and restrictions shall apply thereto as a single Lot except as to the assessments provided for herein. Without the express prior consent and approval of the ARB, no dwelling or other structure or improvement shall be erected, altered, placed or permitted to remain on any site not including at least one (1) full platted Lot according to the recorded Plat of Palmetto Park Woods.

Section 2. NO TEMPORARY BUILDINGS. No tents, trailers, vans, shacks, tanks or temporary or accessory buildings or structures shall be erected or permitted to remain on any Lot without written consent of the Developer. Commercial vehicles shall not be parked within public view on a regular basis.

Section 3. ANTENNAE. No aerials, antennae, satellite dishes or other similar equipment shall be placed or erected upon

any Lot, or affixed in any manner to the exterior of any building in Palmetto Park Woods. If this prohibition or any part thereof is held to be void or unenforceable, any aerial, antenna, satellite dish or other similar equipment shall be deemed restricted, governed, controlled and regulated to the fullest extent permitted by law.

Section 4. BOATS AND MOTOR VEHICLES. No boats, recreation vehicles or other motor vehicles, except four wheel passenger automobiles less than five and six-tenths feet (5.6') in height, shall be placed, parked or stored upon any Lot, nor shall any maintenance or repair be performed upon any boat or motor vehicle upon any Lot, except within a building where totally isolated from public view.

Section 5. TREES. No tree or shrub, the trunk of which exceeds two inches (2") in diameter shall be cut down, destroyed or removed from a Lot without the prior express written consent of the ARB.

Section 6. ARTIFICIAL VEGETATION. No artificial grass, plants or other artificial vegetation, or rocks or other landscape devices, shall be placed or maintained upon the exterior portion of any Lot, unless approved by the ARB.

Section 7. AUTOMOBILE STORAGE AREA. No automobile garage shall be permanently enclosed or converted to another use without the substitution of another enclosed automobile storage area upon the Lot. No carports shall be permitted unless approved by the ARB. All garages shall contain at least four hundred fifty (450) square feet of usable space appropriate for the parking of automobiles. Garages may not be converted to dens, bedrooms or other areas intended for habitation, it being the intent that garages be available for use for the purpose intended.

Section 8. CLOTHES DRYING AREA. Any portion of any Lot used as a drying or hanging area for laundry of any kind shall be screened from view of adjoining Lots and roadways by proper landscaping.

Section 9. LANDSCAPING. An initial basic landscaping plan for each Lot, together with a detailed written estimate of the costs of such plan, must be submitted to and approved by the ARB at the time of construction of a home on such Lot. The Owner of such Lot shall be required to expend a minimum of One Thousand and No/100 U.S. Dollars (\$1,000.00) in landscaping upon such Lot said amount to be based upon the value given by a nursery, exclusive of sodding, fill, grading, mulch, irrigation and design fees. Sodding will be required on all yards; no seeding and/or sprigging shall be permitted. An underground sprinkler system of sufficient size and capacity to irrigate all sodded or landscaped areas must be installed and maintained in good working order on all Lots. All Lots shall be sodded and irrigated to the paved roadway and/or water's edge where such Lot abuts a roadway and/or water body.

Section 10. NUISANCES. Nothing shall be done or maintained on any Lot which may be or become an annoyance or nuisance to the neighborhood. Any activity on a Lot which interferes with television, cable or radio receptions on another Lot shall be deemed a nuisance and a prohibited activity. In the event of a dispute or question as to what may be or become a nuisance, such dispute or question shall be submitted to the Board which shall render a decision in writing, which decision shall be dispositive of such dispute or question.

Section 11. SIGNS. No sign of any kind shall be displayed to the public view on any Lot except for the following:

A. The exclusive sales agent for the original builder of a single family residence of any Lot(s) may place one (1) professional sign advertising the property for sale.

B. Homeowners shall not display or place any sign of any character including "for rent" or "for sale" signs except that a sign displaying the word "open", not to exceed five (5) square feet, may be displayed during any time the homeowner or his designated representative is in attendance.

The size and design of all signs shall be subject to approval by the ARB.

Section 12. IRRIGATION. All individual Lot irrigation systems are required to be connected to the public water system. Individual wells, or use of neighboring water retention systems, are prohibited. Common Area irrigation by the Association may use a well or neighboring water retention systems. Any irrigation from non-potable water sources shall be installed and maintained with filters to avoid staining.

Section 13. LIVING AREA. Each detached single family residence constructed upon a Lot in Palmetto Park Woods shall contain a minimum of one thousand seven hundred (1,700) square feet of air conditioned living area. Living area as referred to in this section excludes garages and patios.

Section 14. LIGHTING. No lighting shall be permitted which alters the residential character of Palmetto Park Woods. No lighting of tennis courts shall be permitted except in the Common Area.

Section 15. MISCELLANEOUS. No weeds, underbrush or other unsightly vegetation shall be permitted to grow or remain upon any Lot, and no refuse pile or unsightly objects shall be allowed to be placed or suffered to remain anywhere thereon; and in the event that any Owner shall fail or refuse to keep his Lot free of weeds, underbrush or refuse piles, debris or other unsightly growths or objects, then the Association may enter upon said Lot and remove the same at the expense of the Owner, and such entry shall not be deemed a trespass. During construction of a dwelling or other improvement, each owner will be required to maintain his Lot in a clean condition, providing for trash and rubbish receptacles and disposal. Construction debris shall not be permitted to remain upon any Lot.

IX. CENTRAL TELECOMMUNICATION RECEIVING AND DISTRIBUTION SYSTEM

Section 1. OWNERSHIP AND USE. Developer reserves and retains for itself, its successors and assigns:

A. The title to any central telecommunication receiving and distribution system which Developer installs or causes to be installed within the Property, and a perpetual easement for the placement and location thereof, including without limitation, conduits, wires, amplifiers, towers, antennae and related apparatus and equipment; and

B. A perpetual easement for ingress to and egress from the Property to service, maintain, install, repair and replace the aforesaid apparatus and equipment; and

C. The right to connect the central telecommunication receiving and distribution system to such receiving source as Developer may in its sole discretion deem appropriate, including without limitation, companies licensed to provide the CATV service in Palm Beach County, Florida, for which service Developer, its successors and assigns, shall have the right to charge every Association member a reasonable fee not to exceed the maximum allowable charge for CATV service as from time to time defined by the Code of Laws and Ordinances of Palm Beach County, Florida.

D. The right to empower a licensee or franchisee to provide CATV service within Palmetto Park Woods and to collect such license or franchise fees in connection therewith as the Developer may, in its sole discretion, deem appropriate.

Section 2. SECURITY SERVICES. Developer, the Association or their successors or assigns or franchisees and the cable telecommunications system operation, may enter into contracts for the provision of security services through the central telecommunications systems.

Section 3. DISCLAIMER OF WARRANTIES AND LIABILITY. DEVELOPER, THE ASSOCIATION AND THEIR FRANCHISEES, AND CABLE TELECOMMUNICATION SYSTEM OPERATOR, DO NOT GUARANTEE OR WARRANT, EXPRESSLY OR IMPLIEDLY, THE MERCHANTABILITY OR FITNESS FOR USE OF ANY SUCH SECURITY SYSTEM OR SERVICES, OR THAT ANY SYSTEM OR SYSTEMS WILL PREVENT INTRUSIONS, FIRES OR OTHER OCCURRENCES, OR THE CONSEQUENCES OF SUCH INTRUSIONS, FIRES OR OCCURRENCES, WHICH THE SYSTEM OR SERVICES ARE DESIGNED TO MONITOR. EVERY OWNER OR OCCUPANT OF PROPERTY SERVICED BY THE CENTRAL TELECOMMUNICATIONS SYSTEM ACKNOWLEDGES THAT DEVELOPER, the ASSOCIATION OR ANY SUCCESSOR, ASSIGN OR FRANCHISEE OF THE DEVELOPER, THE ASSOCIATION OR THE CABLE SYSTEM OPERATOR WILL NOT BE RESPONSIBLE OR LIABLE FOR LOSSES OR INJURIES RESULTING FROM SUCH OCCURRENCES.

Section 4. LIMITATIONS ON DAMAGES. It is extremely difficult and impractical to determine the actual damages, if any, which may proximately result from a failure of a security service to perform any of its obligations with respect to security services; therefore every Owner or occupant of property receiving security services through the central telecommunication system agrees that Developer, the Association or any successor, assign or franchisee of Developer or the Association and the cable telecommunications system operator assumes no liability for loss or damage to property or for personal injury or death to persons due to failure in transmission of an alarm, interruption of security service or failure to respond to an alarm because of (a) any failure of the Owner's security system, (b) any defective or damaged equipment, device, line or circuit, (c) negligence of the security service provider or its officers, agents or employees, or (d) fire, flood, riot, war, act of God or other similar causes beyond the control of the security service provider. Every Owner or occupant of property obtaining security services through the central telecommunications system further agrees for himself, his guests, invitees and licensees that if any loss or damage should result from a failure of performance or operation, or from defective performance or operation, or from improper installation, monitoring or servicing of the system, the liability, if any of the Developer, the Association, any franchisee of Developer, or the Association and the cable system operator or their successors or assigns, for loss or damage sustained shall be limited to a sum not exceeding Two Hundred Fifty and No/100 U.S. Dollars (\$250.00), which limitation shall apply notwithstanding that the loss or damage results directly or indirectly from negligent performance or non-performance by any officer, agent or employee of the Developer, the Association or any franchisee, successor or assign of the Developer, the Association, or the cable system operator. Further, in no event will Developer, the Association, the cable system operator or their successors or assigns, be liable for consequential damages, wrongful death, personal injury or commercial loss.

X ON SITE LAKES

On site lakes are designed as water management areas and are not designed as aesthetic features. Due to low ground water elevations within the immediate area, lakes located on site may be extremely shallow during several months of the year. The Developer and the Association shall incur no liability for receding water levels due to changes in the water table or surrounding properties.

XI GENERAL PROVISIONS

Section 1. DURATION AND REMEDIES FOR VIOLATION. The Covenants and Restrictions of this Declaration shall run with and bind the Property, and shall inure to the benefit of and be enforceable by the Developer, the Association or the Owner of any Property subject to this Declaration, their respective legal representatives, heirs, successors and assigns, for a term of thirty-nine (39) years from the date this Declaration is recorded, after which time said Covenants and Restrictions shall automatically be extended for successive periods of ten (10) years unless an instrument executed by the president and secretary of the Association upon approval by the Owners holding not less than two-thirds (2/3) of the voting interests of the membership has been recorded, agreeing to change or terminate said Covenants and Restrictions in whole or in part. Violation or breach of any condition, covenant or restriction herein contained shall give the Developer and/or Association and/or Owner(s) in addition to all other remedies, the right to proceed at law or in equity to compel compliance with the terms of said conditions, covenants or restrictions, and to prevent the violation of breach of any one of them, and the expenses of such litigation shall be borne by the then Owner or Owners of the subject Property, provided such proceeding results in a finding that such Owner was in violation of said Covenants or Restrictions. Expenses of litigation shall include reasonable attorneys' fees incurred by Developer and/or the Association in seeking such enforcement.

Section 2. NOTICES. Any notice required to be sent to any member or Owner under the provisions of this Declaration shall be deemed to have been properly sent when mailed, postage paid, to the last known address of the person who appears as member or Owner on either the records of the Association or the Public Records of Palm Beach County, Florida, at the time of such mailing.

Section 3. ENFORCEMENT. Enforcement of these covenants and restrictions shall be by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants; and failure by the Association or any owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter.

Section 4. SEVERABILITY. Invalidity of any one of these Covenants and Restrictions by judgment or court order shall in no way affect any other provisions which shall remain in full force and effect.

Section 5. CONFLICT. This Declaration shall take precedence over conflicting provisions in the Articles of Incorporation and By Laws of the Association and the Articles shall take precedence over the By Laws. Section headings are included only for ease of reference and are not intended to add to, limit or affect the substance or meaning of each section.

Section 6. EFFECTIVE DATE. This Declaration shall become effective upon recordation of this Declaration in the Official Records of Palm Beach County, Florida.

Section 7. AMENDMENT. This Declaration may be amended from time to time upon the execution and recordation of an instrument signed by the president and secretary of the Association upon approval by Owners holding not less than two-thirds (2/3) of the voting interests of the membership, provided that so long as Developer is the owner of any Lot, or any Property affected by this Declaration, or amendment hereto, or appoints a Director of the Association, no amendment will be effective without Developer's express written joinder and consent. Provided further, no amendment affecting the Common Area shall be effective without the joinder and consent of the County of Palm Beach, Florida and no amendment affecting the surface water management system, including the water management portion of the Common Areas, shall be effective without

the approval of the South Florida Water Management District. Notwithstanding the foregoing, the Developer, its successors and assigns, reserves the right to amend this Declaration without the joinder or consent of any party, to correct a scrivener's error, to make changes as may be required or advisable to facilitate financings of the Property or Lots, which do not materially change or modify the rights or obligations of any party.

Section 8. USAGE. Whenever used the singular shall include the plural and the singular, and the use of any gender shall include all genders.

IN WITNESS WHEREOF, Developer has caused this Declaration to be executed in its name by its undersigned, duly authorized managing general partner the day and year first above written.

Witnesses

GSG Associates

By: Skender Ghilaga
Skender Ghilaga, Partner

STATE OF FLORIDA

COUNTY OF PALM BEACH

The foregoing Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc. was acknowledged before me this 2nd day of December, 1988 by Skender Ghilaga, as partner, on behalf of GSG Associates, a Florida general partnership.

Robert J. Hunt
Notary Public
My commission expires:

NOTARY PUBLIC STATE OF FLORIDA
MY COMMISSION EXP JUNE 21 1990
BOULEVARD THRU GENERAL INS 11ND

This instrument prepared by:
ROBERT J. HUNT, ESQ.
Hunt, Cook, Riggs & Mehr, P.A.
Suite 400, West Building
1900 Corporate Blvd., N.W.
Boca Raton, FL 33431

ARTICLES OF INCORPORATION
OF
PALMETTO PARK WOODS HOMEOWNERS' ASSOCIATION, INC.
(A CORPORATION NOT FOR PROFIT)

I. NAME

The name of this corporation shall be Palmetto Park Woods Homeowners' Association, Inc. (the "Association"), sometimes hereinafter referred to as the "Association".

II. PURPOSES

The general nature, objects and purposes of the Association are:

1. To promote the health, safety and social welfare of the Owners of Property within that residential area referred to as Palmetto Park Woods and described in the Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc. executed contemporaneously herewith by GSG Associates and to be recorded in the Official Records of Palm Beach County, Florida (the "Declaration").

2. To own and maintain, repair and replace the general and/or "Common Areas", parks, sidewalks and/or access paths, streets and other Common Areas, lakes, structures, landscaping and other improvements in and/or benefitting Palmetto Park Woods for which the obligation to maintain and repair has been delegated and accepted.

3. To control the specifications, architecture, design, appearance, elevation and location of, and landscaping around, all buildings and improvements of any type, including walls, fences, swimming pools, tennis courts, antennae, sewers, drains, disposal systems, or other structures constructed, placed or permitted to remain in Palmetto Park Woods as well as the alteration, improvement, addition or change thereto.

4. To insure compliance with the Master Land Use Plan under the Planned Unit Development ordinance of Palm Beach County, Florida, applicable to Palmetto Park Woods.

5. To control and maintain the waterways, lakes and ponds in Palmetto Park Woods.

6. To provide or provide for private security, fire protection and such other services the responsibility for which has been or may be accepted by the Association, and the capital improvements and equipment related thereto in Palmetto Park Woods.

7. To operate without profit for the benefit of its members.

8. To perform all of the functions contemplated of the Association, and undertaken by the Board of the Association, in the Declaration.

III. GENERAL POWERS

The general powers that the Association shall have are as follows:

1. To hold funds solely and exclusively for the benefit of the Association's members for the purposes set forth in these Articles of Incorporation.

2. To promulgate and enforce rules, regulations, by laws, covenants, restrictions and agreements to effectuate the purposes for which the Association is organized.

3. To delegate power or powers where such is deemed in the interest of the Association.

4. To purchase, lease, hold, sell, mortgage or otherwise acquire or dispose of interests in, real or personal property, except to the extent restricted hereby; to enter into, make, perform or carry out contracts of every kind with any person, firm, corporation or association; to do any and all acts necessary or expedient for carrying on any and all of the activities and pursuing any and all of the objects and purposes set forth in the Articles of Incorporation and not prohibited by the laws of the State of Florida.

5. To fix assessments to be levied against the Property and the cost of effectuating the objects and purposes of the Association and to create reasonable reserves for such expenditures, and to authorize its Board of Directors, in its discretion, to enter into agreements with mortgage companies and other organizations for the collection of such assessments.

6. To charge recipients for services rendered by the Association and the user for use of Association Property where such is deemed appropriate by the Board of Directors of the Association.

7. To pay taxes and other charges, if any, on or against the Association's Property or accepted by the Association.

8. To have generally all powers conferred upon a corporation by the laws of the State of Florida, except as prohibited herein.

9. To maintain, repair, replace, operate and manage the Association properties including all lakes, retention areas, culverts and related appurtenances, including the right to reconstruct improvements after casualty and further to improve and add to the Association properties.

10. To join any elective association or partnership. Provided however, for so long as Developer owns any Lot within the Land, the Developer shall appoint any representative(s) to such elective association or partnership. After Developer no longer owns any Lot within the Property, representative(s) shall be designated by vote of membership.

11. This is a non-stock corporation.

IV. MEMBERS

1. The Members shall consist of the Property Owners in Palmetto Park Woods, and all such Property Owners shall be members of the Association. There shall be two (2) classes of members, as follows:

A. CLASS A MEMBERS. Class A Members shall be all property owners other than the Class B Member. Owners of property shall automatically become Class A Members upon purchase of such property.

B. CLASS B MEMBERS. The Class B Member shall be GSG Associates, a Florida general partnership, or its designee, successor or assignee as Developer of Palmetto Park Woods.

2. The terms "Developer", "Owner", "Board", "Property", "Lot", and any other words whose initial letters are capitalized and

are shown in quotes where first used herein shall have the same definition and meaning as in the Declaration.

3. Palmetto Park Woods consists of that certain real property situated in Palm Beach County, Florida, described as:

Tracts 100, 101 and 102, Block 78, PALM BEACH FARMS PLAT #3, according to the Plat thereof recorded in Plat Book 2, Pages 45 through 54 of the Public Records of Palm Beach County, Florida, less the south 140 feet thereof.

V. VOTING AND ASSESSMENTS

1. Subject to the restrictions and limitations hereinafter set forth, each Member shall be entitled to one (1) vote for each Lot in which he holds the interest required for membership. When one or more persons hold such interest or interests in any Lot, all such persons shall be members, and the vote for such Lot shall be exercised as they among them themselves determine, but in no event shall more than one (1) vote be cast with respect to any Lot. Except where otherwise required under the provisions of these Articles, the Declaration or By Laws, the affirmative vote of the Owners of a majority of Lots represented at any meeting of the members duly called and at which a quorum is present, shall be binding upon the members.

2. The Developer shall have the right to appoint a majority of the Board of Directors so long as it owns at least one (1) Lot in Palmetto Park Woods.

3. The Association will obtain funds with which to operate by assessment of its Members in accordance with the provisions of the Declaration, as supplemented by the provisions of these Articles and the By Laws of the Association relating thereto.

VI. BOARD OF DIRECTORS

1. The affairs of the Association shall be managed by a Board of Directors consisting of five (5) Directors. So long as Developer shall have the right to appoint a majority of the Board of Directors, Directors need not be members of the Association and need not be residents of the State of Florida. There shall be two (2) Directors appointed by the Class A Members so long as the Class B Member has the right to appoint a majority of the Board of Directors. Elections shall be by plurality vote. At the first annual election to the Board of Directors, the term of office of the elected Director receiving the highest plurality of votes shall be established at two (2) years. In addition, the Class B Member shall select two (2) Directors to serve for terms of two (2) years and one (1) Director to serve for a term of one (1) year. Thereafter, as many Directors shall be elected and appointed, as the case may be, as there are regular terms of office of Directors expiring at such time, and the term of the Director so elected or appointed at each annual election shall be for two (3) years expiring at the second (2nd) annual election following their election, and thereafter until their successors are duly elected and qualified, or until removed from office with or without cause by the affirmative vote of a majority of the Members which elected or appointed them. Any Director appointed by the Class B Member shall serve at the pleasure of the Class B Member and may not be removed except by action of the Class B Member, and may be removed from office, and a successor Director may be appointed, at any time by the Class B Member.

2. The names and addresses of the Members of the first Board of Directors who shall hold office until the annual meeting of the members to be held in the year 1989 and until their successors are elected or appointed and have qualified, are as follows:

<u>Name</u>	<u>Address</u>
Skender, Ghilaga	23200 Camino Del Mar, Apt. 505 Boca Raton, FL 33433
Victoria W. Ghilaga	23200 Camino Del Mar, Apt. 505 Boca Raton, FL 33433
Agim Ghilaga	400 Old Country Road Garden City, NY 11530
Valdan Ghilaga	400 Old Country Road Garden City, NY 11530
Robert J. Hunt	c/o Hunt, Cook, Riggs & Mehr, P.A. 5301 North Federal Highway Suite 250 Boca Raton, FL 33487

VII. OFFICERS

1. The officers of the Association shall be a President, a Vice President, a Secretary and a Treasurer, and such other officers as the Board may from time to time, by resolution, create. Any two (2) or more offices may be held by the same person except the offices of President and Secretary. Officers shall be elected for one (1) year terms in accordance with the procedure set forth in the by laws. The names of the officers who are to manage the affairs of the Association until the annual meeting of the Board of Directors to be held in the year 1989 and until their successors are duly elected and qualified are:

President	Skender Ghilaga
Vice President	Agim Ghilaga
Secretary	Robert J. Hunt
Treasurer	Skender Ghilaga

VIII. CORPORATE EXISTENCE

The Association shall have perpetual existence.

IX. BY LAWS

The Board of Directors shall adopt by laws consistent with these Articles.

X. AMENDMENT TO ARTICLES OF INCORPORATION AND BY LAWS

These Articles and the By Laws may be altered, amended or repealed by vote of a majority of the Board of Directors. Provided, however, that no amendment affecting the Developer, or its successors or assigns as Developer of Palmetto Park Woods (as the same is defined in the Declaration shall be effective without the prior written consent of the Developer, or its successors or assigns, as developer.

XI. INCORPORATOR

The name and address of the incorporator of these Articles is

GSG Associates, a Florida general partnership
340 East 72nd Street
New York, New York 10021

XII. INDEMNIFICATION OF OFFICERS AND DIRECTORS

1. The Association hereby indemnifies any director or officer made a party or threatened to be made a party to any threatened, pending or completed action, suit or proceeding:

A. Whether civil, criminal, administrative or investigative, other than one by or in the right of the Association to procure a judgment in its favor, brought to impose a liability or penalty on such person for an act alleged to have been committed by such person in his capacity of director, officer, employee or agent of any other corporation, partnership, joint venture, trust or other enterprise which he served at the request of the Association, against judgments, fines, amounts paid in settlement and reasonable expenses, including attorneys' fees, actually and necessarily incurred as a result of such action, suit or proceeding or appeal therein, if such person acted in good faith in the reasonable belief that such action was in the best interests of the Association, and in criminal actions or proceedings, without reasonable ground for belief that such action was unlawful. The termination of any such action, suit or proceeding by judgment, order, settlement conviction or upon a plea of nolo contendere or its equivalent shall not in itself create a presumption that any such director or officer did not act in good faith in the reasonable belief that such action was in the best interests of the Association or that he had reasonable grounds for belief that such action was unlawful.

B. By or in the right of the Association to procure a judgment in its favor by reason of his being or having been a director or officer of the Association, or by reason of his being or having been a Director, officer, employee or agent of any other corporation, partnership, joint venture, trust or other enterprise which he served at the request of the Association, against the reasonable expenses, including attorneys' fees, actually and necessarily incurred by him in connection with the defense or settlement of such action, or in connection with an appeal therein, if such person acted in good faith in the reasonable belief that such action was in the best interests of the Association. Such person shall not be entitled to indemnification in relation to matters as to which such person has been adjudged to have been guilty of negligence or misconduct in the performance of his duty to the Association unless and only to the extent that the court, administrative agency, or investigative body before which such action, suit or proceeding is held shall determine upon application that, despite the adjudication of liability but in view of all circumstances of the case, such person is fairly and reasonably entitled to indemnification for such expenses which such tribunal shall deem proper.

2. The Board of Directors shall determine whether amounts for which a director officer seeks indemnification were properly incurred and whether such Director or officer acted in good faith and in a manner he reasonably believed to be in the best interests of the Association, and whether, with respect to any criminal action or proceeding, he had no reasonable ground for belief that such action was unlawful. Such determination shall be made by a Board of directors by a majority vote of a quorum consisting of Directors who were not parties to such action, suit or proceeding.

3. The foregoing rights of indemnification shall not be deemed to limit in any way the powers of the Association to indemnify under applicable law.

XIII. TRANSACTIONS IN WHICH DIRECTORS OF OFFICERS ARE INTERESTED

1. No contract or transaction between the Association and one (1) or more of its directors or officers, or between the

Association and any other corporation, partnership, association or other organization in which one (1) or more of its directors or officers are directors or officers, or have a financial interest, shall be invalid, void or voidable solely for this reason, or solely because the director or officer is present at or participates in the meeting of the Board or committee thereof which authorized the contract or transaction, or solely because his or their votes are counted for such purpose. No director or officer of the Association shall incur liability by reason of the fact that he is or may be interested in any such contract or transaction.

2. Interested directors may be counted in determining the presence of a quorum at a meeting of the Board of Directors or of a committee which authorized the contract or transaction.

XIV. DISSOLUTION OF MERGER OF THE ASSOCIATION

1. Upon dissolution of the Association, all of its assets remaining after provision for payment of creditors and payment of all cost and expenses of such dissolution shall be distributed in the following manner:

A. Real property contributed to the Association without the receipt of other than nominal consideration by the Class B Member (or its predecessor in interest) shall be returned to the Class B Member (whether or not a Class B Member at the time of such dissolution), unless it refuses to accept the conveyance (in whole or in part).

B. Dedication to Palm Beach County, Florida, or its successor of the Common Areas, as defined in the Declaration which shall be effective without the prior written consent of Palm Beach County or its successor.

C. Remaining assets shall be distributed among the Members as tenants in common, each Member's share of the assets to be determined in accordance with his voting rights.

2. The Association may be dissolved upon a resolution to that effect being recommended by three-fourths (3/4ths) vote of the Board of Directors, and, if necessary at the time of dissolution, after receipt of an appropriate decree as set forth in Florida Statutes Section 617.05 or statute of similar import, approval by two-thirds (2/3) of the voting rights of the Association's Members.

3. In the event that the Association is dissolved for any reason whatsoever, title to the surface water management system shall be transferred to either a governmental unit or other non-profit organization which will provide for the continued operation and maintenance of the surface water management system.

4. The Association may be merged into another not for profit corporation upon a resolution to that effect being recommended by three-fourths (3/4ths) vote of the Board of Directors, and if necessary at the time of merger, after receipt of an appropriate decree as set forth in Florida Statutes Section 617.051 or statute of similar import, and approval by two-thirds (2/3) of the voting rights of the Association's Members. Provided however, no merger shall be effective without the consent of the Developer for so long as it has the right to appoint any director to the Board of Directors which consent may be withheld for any reason whatsoever.

XV. REGISTERED AGENT

The name of the initial registered agent shall be HCRM Corp. and the street address of the registered agent of the Association shall be Suite 250, 5301 North Federal Highway, Boca

Raton, Florida 33487. The Association shall have the right to designate subsequent registered agents without amending these Articles of Incorporation.

Executed this 10th day of November, 1988.

WITNESSES

GSG ASSOCIATES

E. Zehn
Robert J. Hunt

By: Skender Ghilaga
General Partner

STATE OF FLORIDA :
COUNTY OF PALM BEACH : SS.

The foregoing Articles of Incorporation of Palmetto Park Woods Homeowners' Association, Inc. was acknowledged before me this 10th day of November, 1988 by Skender Ghilaga, as general partner on behalf of GSG Associates, a Florida general partnership.

Robert J. Hunt
Notary Public
My Commission Expires:

NOTARY PUBLIC STATE OF FLORIDA
MY COMMISSION EXP. JUNE 21, 1990
BORNED THRU GENERAL INS. UND.

ACCEPTANCE BY REGISTERED AGENT

HCRM Corp. hereby accepts the above designation as Registered Agent of Palmetto Park Woods Homeowners' Association, Inc.

HCRM CORP.

By: Robert J. Hunt
President

STATE OF FLORIDA :
COUNTY OF PALM BEACH : SS.

The foregoing Acceptance By Registered Agent for Palmetto Park Woods Homeowners' Association, Inc. was acknowledged before me this 10th day of November, 1988 by Robert J. Hunt on behalf of HCRM Corp.

Anita J. Drewick
Notary Public
My Commission Expires:

NOTARY PUBLIC STATE OF FLORIDA
MY COMMISSION EXP. APR. 17, 1992
BORNED THRU GENERAL INS. UND.

BY LAWS
OF
PALMETTO PARK WOODS HOMEOWNERS' ASSOCIATION, INC.

I. DEFINITIONS

The terms herein whose initial letters are capitalized are defined in and shall have the same meaning as in the Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc.

II. LOCATION OF PRINCIPAL OFFICE

The principal office of the "Association" shall be located at Suite 240, 5301 North Federal Highway, Boca Raton, Florida 33487, or at such other place as may be established by resolution of the Association's Board.

III. VOTING RIGHTS AND ASSESSMENTS

1. Every person or entity who is a record fee simple owner of a Lot, including the Developer at all times as long as it owns any Property subject to the Declaration, shall be a member of the Association, provided that any such person or entity who holds such interest only as a security for the performance of an obligation shall not be a member. Membership shall be appurtenant to, and may not be separated from, ownership of any Lot or other property which is subject to assessment.

2. Assessments and installments thereon not paid when due shall bear interest from the date when due until paid at the rate set forth in the Declaration and shall result in the suspension of voting privileges during any period of such non-payment.

IV. BOARD OF DIRECTORS

1. A majority of the Board of Directors shall constitute a quorum to transact business at any meeting of the Board, and the action of a majority present at a meeting at which a quorum is present shall constitute the action of the Board.

2. Any vacancy occurring on the Board because of death, resignation or other termination of services of any director, shall be filled by the Board, except that Developer, to the exclusion of other members and/or the Board itself, shall fill any vacancy created by the death, resignation, removal or other termination of services of any director appointed by the Developer. A director appointed to fill a vacancy shall be appointed for the unexpired term of his predecessor in office and until his successor shall have been elected and/or appointed and qualified.

V. ELECTION OF DIRECTORS

1. Nominations for the elections of Board members may be made by a nominating committee if one is appointed by the Board.

2. Developer shall within fourteen (14) days of the date set for the annual meeting of the Association, notify the Secretary and the nominating committee of the names of the directors the Developer is appointing to the Board. Within thirty (30) days of such date, the nominating committee shall notify the Secretary of the names of the candidates nominated for election to the Board.

3. The nominating committee shall make as many nominations for election to the Board as it shall in its discretion determine. In addition to nominations made by the nominating committee, petitions for nominees shall be accepted if signed by either fifteen (15) Class A Members or by one-third (1/3) of the Class A Membership, whichever is smaller. Nominations and notification of the vacancies being filled by the Developer shall be placed on a written ballot as provided in Section 4 of this Article and shall be made in advance to the time fixed for the annual meeting.

4. All elections to the Board shall be made on written ballots to be voted at the annual meeting, or in the direction of the Board, by mail thirty (30) days prior to the annual meeting, which shall (a) describe the vacancies to be filled by Class A Members, and (b) set forth the names of those nominated for each vacancy by the nominating committee or by petition for such vacancy and the names of those appointed to the Board by the Developer. Each member may, in respect to each vacancy on the Board, cast one (1) vote.

5. The members of the Board elected or appointed in accordance with the procedures set forth in this Article shall be deemed elected or appointed as of the date of the annual meeting.

VI. POWERS AND DUTIES OF THE BOARD OF DIRECTORS

1. The Board shall have the power:

A. To call meetings of the Members.

B. To appoint and remove at pleasure all officers, agents and employees of the Association, prescribe their duties, fix their compensation, and require of them such security or fidelity bond as it may deem expedient. Nothing contained in these By Laws shall be construed to prohibit the employment of any Member, officer or director of the Association in any capacity whatsoever.

C. To establish, levy and assess, and collect the assessments necessary to operate the Association and carry on its activities, and to create such reserves for extraordinary expenditures as may be deemed appropriate by the Board.

D. To appoint committees, adopt and publish rules and regulations governing the use of the "Common Area" or any portion thereof and the personal conduct of the members and their guests thereon, including reasonable admission charges if deemed appropriate.

E. To authorize and cause the Association to enter into contracts for the day-to-day operation of the Association and the discharge of its responsibilities and obligations.

F. To exercise for the Association all powers, duties and authority vested in or delegated to this Association, except those reserved to members in the Declaration or the Articles of Incorporation of the Association.

2. It shall be the duty of the Board:

A. To cause to be kept a complete record of all of its acts and corporate affairs.

B. To supervise all officers, agents and employees of this Association, and to see that their duties are properly performed.

C. With reference to assessments of the Association:

(1) To fix the amount of the assessment against each Member for each assessment period at least thirty (30) days in advance of such date or period;

(2) To prepare a roster of the Members and assessments applicable thereto which shall be kept in the office of the Association and shall be open to inspection by any Member; and

(3) To send written notice of each assessment to every Member subject thereto.

D. To issue or cause an appropriate officer to issue upon demand by any person, a certificate setting forth whether any assessment has been paid. Such certificate shall be prima facie evidence of any assessment therein stated to have been paid.

VII. DIRECTORS AND MEETINGS

1. The annual meeting of the Board shall be held at 3:00 P.M. on the second Monday of May in Boca Raton, Florida, of each year at the principal office of the Association, unless some other time and/or place is designated by the Board. Regular meetings of the Board shall be held at such time and place as provided by appropriate resolution of the Board.

2. Notice of such meeting is hereby dispensed with. If the day for a regular meeting shall fall upon a holiday, the meeting shall be held at the same hour on the first (1st) day following which is not a holiday, and no notice thereof need be given.

3. Special meetings of the Board shall be held when called by the president or vice president of the Association or by any three (3) directors after not less than three (3) days' notice to each director.

4. The transaction of any business at any meeting of the Board however called and noticed, or wherever held, shall be as valid as though made at a meeting duly held after regular call and notice that a quorum is present and, if either before or after the meeting, each of the directors not present signs a waiver of notice, or a consent to the holding of such meeting, or an approval of the minutes thereof. All such waivers, consents or approvals shall be filed with the corporate records and made a part of the minutes of the meeting.

VIII. OFFICERS

1. The officers shall be a president, a vice president, a secretary, and a treasurer, and such other officers as may be determined by the Board, in accordance with the Articles of Incorporation, to be from time to time appropriate. The president shall be a member of the Board, but the other officers need not be.

2. Except for officers appointed by the Developer, no officer shall succeed himself/herself to a successive term in office unless appointed three-fourths (3/4ths) vote of the Board.

3. The officers of the Association shall be appointed by the Board at the annual meeting of the Board, which shall be held immediately following the annual meeting of the Association. New offices may be created and filled at any meeting of the Board. Each officer shall hold office until his successor shall have been duly elected and qualified.

4. A vacancy in any office because of death, resignation or other termination of services, may be filled by the Board for the unexpired portion of the term.

5. All officers shall hold office at the pleasure of the Board.

6. The president shall preside at all meetings of the Board, shall see that orders and resolutions of the Board are carried out and sign all notes, checks, leases, mortgages, deeds and all other written instruments.

The vice president, or the vice president so designated by the Board if there is more than one vice president, shall perform all duties of the president in his absence. The vice president shall perform such other acts and duties as may be assigned by the Board.

8. The secretary shall be ex officio the secretary of the Board, shall record the votes and keep the minutes of all proceedings in a book to be kept for that purpose. He shall sign all certificates of membership. He shall keep the records of the Association. He shall record in a book kept for that purpose all the names of the Members of the Association together with their addresses as registered by such Member.

9. The treasurer shall receive and deposit in appropriate bank accounts all monies of the Association and shall disburse such funds as directed by resolution of the Board, provided however, that a resolution of the Board shall not be necessary for disbursements made in the ordinary course of business conducted within the limits of a budget adopted by the Board. The treasurer may, but need not be, a required signatory on checks and notes of the Association.

10. The treasurer or his appointed agent, shall keep proper records of account and cause an annual review of the Association books to be made by a certified public accountant at the completion of each fiscal year. He or his appointed agent shall prepare an annual budget and an annual balance sheet statement and the budget and balance sheet statement shall be open for inspection upon reasonable request of a Member.

IX. COMMITTEES

1. The standing committees of the Association shall be:

The Nominating Committee(s)
The Maintenance Committee
The Architectural Review Board ("ARB")

Each committee, other than the ARB, shall consist of a chairman and two (2) or more members and shall include a member of the Board. The committees, except the ARB, shall be appointed by the Board to serve until the succeeding committee members have been appointed. The Board may appoint such other committees as it deems advisable.

2. The Nominating Committee shall have the duties and functions described by these By Laws.

3. The Maintenance Committee shall advise the Board on all matters pertaining to the maintenance, repair or improvement of properties in Palmetto Park Woods, and shall perform or seek the performance of such other functions as the board, in its discretion, determines.

4. The ARB shall be appointed, shall serve, and shall have the duties and functions described in the Declaration. A party aggrieved by a decision of the ARB shall have the right to make a written request to the Board, within thirty (30) days of such decision, that the Board review such decision. The determination of the Board upon reviewing such decision of the ARB shall in all events be dispositive.

5. The Maintenance Committee and other committees appointed and so empowered by the Board, but not the Nominating Committee of the ARB, shall have the power to appoint subcommittees from among their membership and may delegate to any such subcommittee any powers, duties and functions.

6. It shall be the duty of each committee to receive complaints from members on any matter involving Association functions, duties and activities within its scope of responsibility. It shall dispose of such complaints as it deems appropriate or refer them to such other committee, director or officer of the Association which is further concerned with the matter presented.

X. BOOKS AND PAPERS

The books, records and papers of the Association shall at all times, during reasonable business hours, be subject to the inspection of any Member.

XI. SEAL

The Association shall have a seal in circular form, having within its circumference the words: PALMETTO PARK WOODS HOMEOWNERS' ASSOCIATION, INC., corporation not for profit, 1988, Florida.

XII. AMENDMENTS

These By Laws may be altered, amended or rescinded by majority vote of the directors present at a duly constituted meeting of the Board except that no amendment affecting the Developer shall be effective without Developer's written consent. Any amendment with respect to Article VIII Section 2 of the By Laws shall require the written consent of the Developer, which may be withheld for any reason whatsoever.

CERTIFICATE

The foregoing were adopted as the By Laws of Palmetto Park Woods Homeowners' Association, Inc., a Florida corporation not for profit on December 2nd, 1988.

Palmetto Park Woods Homeowners'
Association, Inc.

Attest:

Robert J. Hunt
Robert J. Hunt, Secretary

By:

Skender Ghilaga
Skender Ghilaga, President

ARCHITECTURAL PLANNING CRITERIA

WHEREAS, the Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc. (the "Declaration"), being recorded simultaneously herewith in the Official Records of Palm Beach County, Florida, provides that GSG Associates, a Florida general partnership, (the "Developer"), shall form a Committee known as the Architectural Review Board (the "ARB"); and

WHEREAS, the Declaration provides that the Board of Directors of Palmetto Park Woods Homeowners' Association, Inc. (the "Association") on recommendation of such ARB shall adopt and modify or amend from time to time Architectural Planning Criteria for Palmetto Park Wood, which criteria is to be set forth in writing and made known to all Owners and all prospective owners in Palmetto Park Wood.

NOW, THEREFORE, the Developer has appointed a committee to be known as the ARB and in accordance with the duties and obligations imposed upon this committee by the Declaration, the Board of Directors of the Association, upon recommendation of the ARB, does hereby adopt the following Architectural Planning Criteria:

1. BUILDING TYPE. No building shall be erected, altered, placed or permitted to remain on any Lot, other than one (1) detached single family residence designed by a Florida registered architect containing not less than one thousand seven hundred (1,700) square feet, of livable, air-conditioned enclosed floor area (exclusive of open or screen porches, patios, terraces, garages and carports) not to exceed thirty-five feet (35') in height and having a private and enclosed garage (or carport if approved). Unless approved by the ARB as to use, location and architectural design, no garage, tool or storage room may be constructed separate and apart from the residential dwelling, nor can any such structure(s) be constructed prior to construction of the main residential dwelling.

2. LAYOUT. No foundation for a building shall be poured, nor shall construction commence in any manner or respect, until the layout for the building is approved by the ARB. It is the purpose of this approval to assure that no trees are unnecessarily disturbed and that the home is placed on the lot in its most advantageous position.

3. EXTERIOR COLOR PLAN. The ARB shall have final approval of all exterior color plans and each owner must submit to the ARB prior to initial construction and development upon any Lot a color plan showing the color of the roof, exterior walls, shutters, trims, etc. The ARB shall consider the extent to which the color plan is consistent with the homes in the surrounding areas and the extent to which the color plan conforms with the natural color scheme of and for Palmetto Park Woods.

4. ROOFS. Flat roofs shall not be permitted unless approved by the ARB. Such areas where flat roofs may be permitted are Florida rooms, porches and patios. There shall be no flat roofs on the entire main body of a building; provided that, the ARB shall have discretion to approve such roofs on part of the main body of a building, particularly if modern or contemporary in design. Minimum pitch of roofs will be five-twelfths (5/12ths). Mansard roofs will not be permitted. The composition of all pitched roofs shall be tile, cedar shake shingle, slate or concrete construction, or other composition approved by the ARB. Asphalt shingles will not be allowed.

White roofs will not be permitted without specific approval from the ARB.

5. Similar elevations shall not be built directly adjacent, diagonally or across from each other.

6. GARAGES. In addition to the requirements stated in Paragraph 1 hereinabove, all garages shall have a minimum square footage of four hundred (400) square feet as measured from the inside wall of the garage. All garages must have a single overhead door with a minimum width of sixteen feet (16') for a two (2)-car garage. No carports will be permitted unless approved by the ARB.

7. DRIVEWAY CONSTRUCTION. All dwellings shall have a paved driveway of stable and permanent construction of at least seventeen feet (17') in width at the entrance to the garage and twelve feet (12') in width at the street. All driveways must be constructed with concrete or other material approved by the ARB. Where curbs are required to be broken for driveway entrances, the curb shall be repaired in a neat and orderly fashion acceptable to the ARB.

8. DWELLING QUALITY. The ARB shall have final approval of all exterior building materials. Exposed concrete block shall not be permitted on the exterior of any building or detached structure unless prior approval is obtained from the ARB. The ARB shall discourage the use of imitation materials for facades and encourage the use of front materials such as brick, four inch (4") or five inch (5") block, stone, wood and stucco, or a combination of the foregoing.

9. SIGNS. No sign of any kind shall be displayed to the public view on any Lot except the following:

A. The exclusive sales agent for the original building of a single family residence on any Lot(s) may place one (1) professional sign, approved in advance by the ARB, advertising the property for sale.

B. Homeowners shall not display or place any sign of any character including "for rent" or "for sale" signs except that a sign displaying the word "open", not to exceed five (5) square feet, may be displayed during anytime the homeowner or his designated representative is in attendance.

The size and design of all signs shall be subject to approval by the ARB.

10. GAMES AND PLAY STRUCTURES. All basketball backboards, tennis courts and play structures shall be located at the rear of the dwelling, or on the inside portion of corner Lots within the setback lines. No playform, doghouse, tennis court, playhouse or structure of a similar kind or nature shall be constructed on any part of a Lot located in front of the rear line of the residence constructed thereon, and any such structure must have prior approval of the ARB and include sufficient landscaping treatment acceptable to the ARB.

11. FENCES AND WALLS. Fences are discouraged, and when a barrier is desired, landscaping is suggested as a substitute. The composition, location and height of any fence or wall to be constructed on any Lot shall be subject to the approval of the ARB. The ARB shall require the composition of any fence or wall to be consistent with the material used in the surrounding homes and other fences, if any. Fences will not be permitted on Lot lines. Pool fencing must be accomplished directly adjacent to pool decking unless otherwise approved by the ARB.

12. LANDSCAPING. A landscaping plan and specifications, prepared by a Florida registered architect for each Lot must be submitted to and approved by the ARB prior to initial construction and development therein. The landscape plan must be at one-eighth (1/8) scale and must show the following:

- A. Lot property lines
- B. Lot sidewalks and street pavement edge
- C. Any and all easements
- D. All exterior walls with all window and door openings
- E. All site paving, pools, planters and constructed landscape features
- F. All existing and proposed vegetation
- G. OA plant list showing quantity, scientific name, common name, size/description, per unit cost and total cost for each plant.

A minimum of One Thousand and No/100 U.S. Dollars (\$1,000.00) in landscape plan material is required on each Lot, excluding sod and irrigation. Not more than twenty-five percent (25%) of the required landscaping shall be of groundcover and/or seasonal planting. In addition to required landscaping, each Lot is required to be sodded with St. Augustine "Floratum" sod and have an automatic irrigation system. The entire Lot, including that portion of the Lot between the street pavement and the right of way line, shall be irrigated and maintained. It shall be the goal of the ARB in the approval of any landscape plan and layout plan to preserve all existing trees where possible.

13. SWIMMING POOLS AND TENNIS COURTS. Any swimming pool or tennis court to be constructed on any Lot shall be subject to the requirements of the ARB, which include, but are not limited to the following:

- A. Composition to be of material thoroughly tested and accepted by the industry for such construction;
- B. The outside edge of any pool wall may not be closer than four feet (4') to a side extended and aligned with the side walls of the dwelling;
- C. No screening of pool area may stand beyond a line extended and aligned with the side walls of the dwelling unless approved by the ARB;
- D. Pool screening may not be visible from the street in front of the dwelling;
- E. Location and construction of tennis or badminton court must be approved by ARB;
- F. Any lighting of a pool or other recreation area shall be designed so as to buffer the surrounding residences from the lighting;
- G. Tennis court lighting shall not be permitted.

If one owner elects to purchase two (2) adjoining Lots and use one for recreation purposes, the Lot used for recreation purposes must be adequately screened by landscaping and/or walls or fences on both the front and side as required by the ARB. It shall be the intent of the ARB to screen any such use from public view.

14. GARBAGE AND TRASH CONTAINERS. No Lot shall be used or maintained as a dumping ground for rubbish, trash or other waste. All trash, garbage and other waste shall be kept in sanitary containers and, except during pickup, if required to be placed at the curb. All Lots shall be maintained during construction in a neat and nuisance-free condition.

15. TEMPORARY STRUCTURES. No structure of a temporary character, trailer, basement, tent, shack, garage, barn, or other out building shall be used on any Lot at any time as a residence either temporarily or permanently, except that the Lot may be used as a sales office during the development of Palmetto Park Woods, or other developments by Developer in the same area. A construction trailer may be parked during the construction phase only with the express written consent to Developer on certain designated Lots.

16. REMOVAL OF TREES. In reviewing building plans, the ARB shall take into account the natural landscaping such as trees, shrubs and palmettos, and encourage the Owner to incorporate them in his landscaping plan. As a result a tree survey will be required clearly indicating which trees will be removed and which trees will remain. No trees of two inches (2") in diameter at one foot (1') above natural grade shall be cut or removed without approval of the ARB, which approval may be given when such removal is necessary for the construction of a dwelling or other improvement.

17. WINDOW AIR CONDITIONING UNITS. No window or wall air conditioning units shall be permitted.

18. MAILBOXES. No mailbox or paperbox or other receptacle of any kind for use in the delivery of mail or newspapers or magazines or similar material shall be erected on any Lot other than that approved by the Developer. If and when the United States mail service or the newspaper or newspapers involved shall indicate a willingness to make delivery to wall receptacles attached to dwellings, each property Owner, on the request of the ARB, shall replace the boxes or receptacle previously employed for such purpose or purposes with wall receptacles attached to dwellings.

19. SIGHT DISTANCE AT INTERSECTION. No fence, wall, hedge, or shrub planting which obstructs sight lines and elevations between two feet (2') and six feet (6') above the roadways shall be placed or permitted to remain on any corner Lot within the triangular area formed by the street property lines and a line connecting them at points twenty-five feet (25') from the intersection of the street lines, or in case of a rounded property corner, from the intersection of a street property line with the edge of a driveway or alley pavement. No trees shall be permitted to remain within such distances of such intersections unless the foliage line is maintained at sufficient height to prevent obstruction of such sight-lines.

20. UTILITY CONNECTIONS. Building connections for all utilities, including, but not limited to water, electricity, telephone and television shall be run underground from the proper connecting points to the building structure in such a manner to be acceptable to the governing utility authority.

21. SETBACKS. A minimum of a ten foot (10') front setback must be adhered to in the construction of all houses. The rear setback must be a minimum of ten feet (10'). Minimum side yard setbacks will be ten feet (10').

22. ARB REPORTS. The ARB's approval or disapproval as required in the foregoing Architectural Planning Criteria shall be delivered in writing to the Board of Directors of the Association and to the Lot owner submitting same, together with a copy of the approved plans and specifications signed by the Lot Owner and the contract purchaser of the Lot, if any. In the event the ARB fails to approve or disapprove plans and specifications within thirty (30) days of submission thereto, or in any event, if a suit to enjoin the construction has been commenced prior to the completion thereof, approval will not be required and the related criteria shall be deemed to have been fully complied with.

December 2, 1988

Palmetto Park Woods
Architectural Review Board

This instrument prepared under
the supervision of Rodney Potolicchio,
President of Palmetto Park Woods
Homeowners' Association, Inc.
9730 Via Emilie, Boca Raton, FL 33428

**AMENDMENT OF ARTICLE VIII "RESTRICTIONS" OF THE DECLARATION OF
COVENANTS AND RESTRICTIONS FOR PALMETTO PARK WOODS
HOMEOWNERS' ASSOCIATION, INC., BY ADDING SECTION 16, ENTITLED
"USE AND OCCUPANCY AS SINGLE FAMILY DWELLING"**

We, the Owners, as defined in Article I, paragraph "D", of the Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc. (hereinafter "Declaration"), constituting at least 2/3 of the voting interests of the membership of the Palmetto Park Woods Homeowners' Association (hereinafter "the Association"), hereby amend Article VIII "Restrictions" of the Declaration, as recorded in Official Records Book 6047, Pages 443 through 472, of the Public Records of Palm Beach County, Florida, by ratifying, adopting and adding the following "Section 16" and direct the President and Secretary of the Association to forthwith record this Amendment of the Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc., by Adding Section 16, Entitled "Use and Occupancy as Single Family Dwelling", to read as follows:

Section 16. USE AND OCCUPANCY AS SINGLE FAMILY DWELLING.

A. This Section is adopted in order to:

- (1) Preserve the peace, tranquility, safety and quiet enjoyment of each residential occupant of Palmetto Park Woods;
- (2) Maintain the aesthetic value and market value of each parcel of property located within Palmetto Park Woods; and
- (3) Provide a remedy of temporary and/or permanent injunctive relief and/or monetary damages against any Owner or other person who violates the restrictions set forth in this Section 16.

B. Definitions:

- (1) The term "Residence" includes any portion of the lot owned by the Owner;
- (2) The term "Occupancy" or "Occupied" means to be physically present at a Residence, common area or street within the Palmetto Park Woods subdivision for a total period of four or more hours in any consecutive twenty-four hour period. The presence of a Third Party's motor vehicle or motorcycle at a Residence or upon any portion of the common area and/or upon Via Emilie shall be proof of Occupancy.

(3) The term "Third Parties" means any person or persons not related by blood or marriage to the Owner and any person not in a monogamous committed relationship with the Owner, regardless of whether or not such person is an invited guest of the Owner or Occupant of the Residence;

(4) The term "Rent" includes any oral or written agreement, whether or not entered into with the knowledge and/or consent of the Owner, which results in any Third Parties sleeping within the residence and/or placing and/or storing any personal property of Third Parties within or upon the Residence, whether or not for any consideration whatsoever.

C. Effective fourteen (14) days from the date of recording of this Amendment in the Public Records of Palm Beach County, Florida, each Owner, as defined in Article I, paragraph "D", of the Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc., shall not permit the following activity in or upon the residence of the Owner:

(1) In the event that the Owner is not current in the payment of any assessment due the Association by the Owner or predecessor in title of the Owner, the Owner or any agent and/or family member of the Owner shall not Rent any portion of the Residence and/or shall not allow any portion of the Residence to be Occupied by any Third Parties whomsoever.

(2) While any lawsuit is pending in the Courts of this State to foreclose any Residence, regardless of the status of the lawsuit, the Owner of that Residence shall not allow any portion of the Residence to be occupied by any Third Parties whomsoever and/or the personal property of Third Parties.

(3) No more than four (4) motor vehicles, as defined in Section 316.003(21), Florida Statutes (2008) shall be parked upon the Residence so as to be visible to any other Owner; each of these motor vehicles shall only be permitted to park upon the paved driveway of the Owner's Residence. No more than one motorcycle may be parked at a Residence and then only within an enclosed garage area not visible to any other Owner. Bicycles shall be parked within the enclosed garage. All rules and regulations of the Association concerning the parking of motor vehicles and motorcycles on Via Emilie or any of the common areas of the Association are hereby incorporated by reference.

(4) In addition to any other remedies provided in this Section 16 and/or by law, the Association may levy a fine of \$100.00 per day against the Owner and, separately, against any Third Party acting in violation of any of the provisions of Subsection C.(1), C.(2), and C.(3).

D. Should any violation of any of the provisions of Subsection "C" of this Section 16 occur, any Owner, group of Owners and/or the Association shall have the right to enforce any of the provisions of Subsection "C" of this Section 16 against any Owner or Third Party by the filing of a lawsuit for temporary and/or permanent injunctive relief and/or damages. At any hearing or trial of the issues in the suit:

(1) It shall only be necessary that proof of any violation of this Section 16 be made by a preponderance of the evidence;

(2) Irreparable harm shall be presumed from any violation of any portion of Section 16;

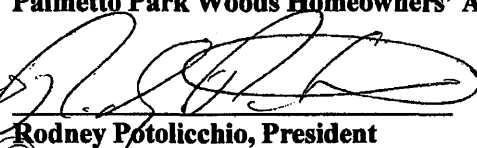
(3) In the event temporary injunctive relief is sought, and the Court determines that such relief should be granted, a bond in no greater sum than \$1,000 shall be required from the party to whom the temporary injunctive relief is granted.

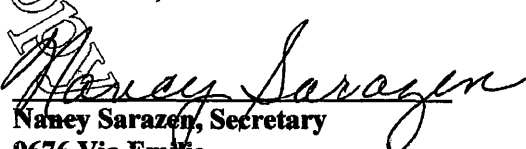
E. In the event suit, counterclaim or third party claim is filed by the Association to enforce any rights, including but not limited to temporary and/or permanent injunctive relief and/or damages under this Section 16, the prevailing party in such action shall be entitled to an award of reasonable attorney's fees and costs at the trial and appellate level.

IN WITNESS WHEREOF, the President and Secretary of the Association attest that at least two thirds of the Owners have voted to adopt this Amendment and hereby execute this Amendment on behalf of the Association.

Dated this 10 day of December, 2008.

Palmetto Park Woods Homeowners' Association, Inc.


Rodney Potolicchio, President
9730 Via Emilie
Boca Raton, FL 33428


Nancy Sarazen, Secretary
9676 Via Emilie
Boca Raton, FL 33428

STATE OF FLORIDA)
COUNTY OF WEST PALM BEACH) SS:

ON THIS DAY, personally appeared before me, the undersigned authority Rodney Potolicchio and Nancy Sarazen, President and Secretary of Palmetto Park Woods Homeowners' Association, Inc., personally known to me or who produced the following identification drivers licenses who executed the foregoing document for the purposes set forth therein.

Dated on this 10 day of December, 2008.


NOTARY PUBLIC STATE OF FLORIDA

My Commission Expires:

3/9/2009

Page 3 of 3

LINDA J. SCHRAGENHEIM
NOTARY PUBLIC - STATE OF FLORIDA
COMMISSION # DD405079
EXPIRES 3/9/2009
BONDED THRU 1-888-NOTARY1

Villaggio of Boca Raton Homeowner's Association

Rules and Regulations

In order to enable owners and their guests to occupy, enjoy and appreciate the benefits of our community, the Homeowner's Association has adopted the following Rules and Regulations. In living as neighbors, all of us not only have certain rights, but also responsibilities to other Owners. The restrictions we impose upon ourselves are for our mutual benefit and to protect the health, safety and well being of all.

These Rules and Regulations are also in accordance with Federal, State County and city laws relating to health, safety, sanitation, police and similar matters. The HOA considers these Rules and Regulations very important for the entire Community. However it should NOT be construed as complete and all-inclusive. The Rules and Regulations are summarized in accordance with the "Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc." (aka "Villaggio")

Please review and familiarize yourself with the original documents.

The HOA and Board of Directors shall have full power and authority to enforce these rules.

Objectionable or offensive behavior as determined by the HOA which affects the health, safety or general well being of the community or its residents is not acceptable even if it is not specifically covered in these Rules and Regulations.

Enforcement:

Failure of an Owner to comply with any Rule or Regulation adopted by the Homeowner Association shall be grounds for action which may include an action to recover sums due for damages, injunctive relief or any combination thereof. In any actions, the HOA shall be entitled to recover any and all court costs incurred, together with reasonable attorney's fees, against the responsible Owner (s) and, as appropriate, any violator (s). In addition, and in the sole discretion of the Board, fines may be imposed upon an Owner for failure to comply with any Rule or Regulation.

Amendment:

The HOA reserves the right to amend, clarify or alter these Rules and Regulation at any time.

1.. ARCHITECTURAL REVIEW BOARD (ARB)

As provided in the Declaration, no Owner shall make any improvement, addition or alteration to his Lot or the exterior of his Home without the prior written approval of the ARB. All requests for ARB approval of any improvement (as defined below) must be on the form designated for this purpose by and available from the Association. No changes shall be commenced until such time as the Owner is in receipt of written approval from the ARB.

All exterior improvements, additions, modifications, decorations or alterations to the Lot or Home, except the normal maintenance of existing landscape and the seasonal planting of annuals, shall be reviewed by and have written approval given by ARB. The ARB shall require the submission of plans and specifications showing the material, color, structure, dimensions and location of the proposed improvement in sufficient detail to assure compliance with any criteria established for approval. Notwithstanding any criteria established, the ARB shall in its discretion determine whether the improvement shall be in harmony with or detrimental to the appearance of the Community.

The ARB shall approve or disapprove the request within 30 days from receipt of requested submission plans and materials.

In the event the ARB fails to approve or disapprove a request in writing within 30 days of receipt, unless a request is specifically deferred, the request shall automatically be deemed as approved.

The ARB shall employ the following minimum criteria for approval or rejection of requests:

- A. Uniformity of type and design in relation to similar improvements
- B. Comparability of quality of materials as used in existing improvements
- C. Uniformity with respect to color, size and location.

If approved by the ARB, all construction shall be subject to the Rules and Regulations and any applicable government laws, statutes, ordinances, rules and regulations, including obtaining all proper permits.

Without limiting the generality of the criteria mentioned above and without curtailing the right of the ARB or the Board in rejecting certain requests, the following guidelines shall be considered when evaluating requests for improvement:

- 1 Painting:** No Owner shall make any improvements, addition or alteration to the exterior of his House, including, without limitation, the painting, staining, or varnishing of the exterior of the House without being in accordance with the Documents and without written approval of the Association, which approval may be withheld for purely aesthetic reasons.
- 2.** It is not permitted to paint the House with the same color as the neighboring Houses.
- 3, Temporary Structure:** No tents, trailers, shacks or other temporary buildings or structures shall be constructed or otherwise placed on a Lot.
- 4. Screen Enclosures:** Approval for screen enclosures and screen doors shall be limited to aluminum frame structure in white and screen meshes that are approved for existing houses by the Board.
- 5. Fences:** Approval for fences shall be limited to aluminum frame structure in white that are approved for existing houses by the Board. 2

6. **Basketball Hoops:** Installation of basketball hoops is not permitted on the driveways and on the property. Portable Hoops and supports must be stored out of view when not in use.
7. **Owners shall not have any Exterior lighting fixtures, window screens, screen doors, awnings, hurricane shutters, hardware or similar items installed which are not consistent with the general architecture of the House as determined by the Association without first obtaining specific written approval of the Association. The Association shall not grant approval if, in its opinion, the effect of any of the items mentioned herein will be unsightly.**

1. COMMON AREA, ASSOCIATION PROPERTY

Owners shall not make any alterations in any improvement, landscaping or install any outdoor furniture and play equipment within the Association Property (Common Area) or remove any portion or make any additions thereto.

Owners shall not do anything which would or might jeopardize or impair the safety and soundness of the Association property or which, in the sole opinion of the Association, would detrimentally affect the architectural design of a building within the subject property.

It is prohibited to litter or cause debris to be put in any of the common areas.

Any damage to Association property, including common area, which is caused by any Owner or family member, guest, invited or tenant of the Owner shall be repaired or replaced at the expense of the Owner.

2. LANDSCAPING

No landscaping whatsoever shall be permitted without the written permission of the ARB because there are underground utilities which may present a hazard. If an Owner wishes to landscape an area which is located upon a utility easement, the Owner must obtain the appropriate approval for the landscaping from the utility service in addition to ARB approval.

3. ANIMALS AND PETS

Only common domestic household pets (i.e., cats, dogs, birds and fish) may be kept on any Lot or in a house but in no event for the purpose of breeding or for any commercial purpose whatsoever.

Under no circumstances may a pit bull, mixed breeds of banned dogs and any other aggressive pets, which are trained to attack people and other pets be permitted on the Villaggio property.

Permitted pets shall only be kept subject to and in accordance with such rules and regulations as shall be promulgated from time to time by the Board.

Pet Owners are responsible for any property damage, personal injury or disturbance which their pet may cause or inflict. Each Owner who determines to keep a pet agrees to indemnify the Association and hold the Association harmless against any loss or liability of any kind or character whatsoever arising from or growing out of his having any animal on the property.

Pets must be carried or kept on a leash when outside of the House or fenced in area. No pet shall be permitted to go or stray on any other Lot without permission of the owner of the Lot. No pet shall be kept outside of a House, or in a screened area unless someone is presenting the House.

Any solid animal waste shall be immediately picked up and removed and shall not be deposited on or within the common area.

4. TRASH AND OTHER MATERIALS

All trash, rubbish, garbage refuse or other waste material shall be kept or stored in sanitary, self-locking containers.

Trash, garbage, refuse or rubbish that is required to be placed at the front of the Lot, in order to be collected may be placed and kept at the front of the Lot after 5:00 P.M., on the day before the scheduled day of collection but not sooner, and the containers must be restored in the Owners garage on the collection day after the pick-up.

Each Owner shall regularly pick up all garbage, trash, refuse or rubbish on his Lot and no Owner or Resident shall place or dump any garbage, trash, refuse or other materials on any portions of the property including common area.

5. GARAGES

No garage shall be permanently enclosed as to make such garage unusable by a vehicle, and no portion of a garage originally intended for the parking of a vehicle shall be converted into a living space or storage area without the consent of the Board. No individual air conditioning units which are visible from the outside the House shall be permitted in a garage.

6. SIGNS

Owners shall not display any other sign, advertisement or notice of any type in Villaggio. The Board shall not approve any request to display "FOR SALE" signs. "OPEN HOUSE" signs may be displayed for the duration of the Open House only.

7. HURRICANE

All possible projectiles on a Lot must be brought inside or safely secured by the Owner during the time in which a hurricane warning is in effect.

It is strongly recommended that all Owners secure all windows by installing hurricane shutters when a warning has been issued.

No hurricane shutters shall cover windows or door openings except during periods of a hurricane watch or warning that impact the community.

8. LAKE

No swimming or boating is permitted in the lake. Nothing shall be thrown in the lake. Owners will be liable for removal or cost of removal of any object they or families, guests and invitees put in the lake.

9. RENTAL OF UNITS

Rentals of homes in Villaggio shall be limited in number to 15% of the community or a total of 5 homes.

Prospective tenants must submit an application for approval to the Board of Directors through the Management company, accompanied by an application fee of \$100 and a copy of the written lease.

All rentals of units by Owners must be approved by the Board of Directors through the Management company. The board of Directors shall have the right to require an interview of a prospective renter.

The Owner of a unit which is rented shall provide the tenant (s) with a copy of the Declaration of Covenants and a copy of Rules and Regulations of the association.

Lawn and pool service must be provided by the Owner and not left up to the responsibility of the Tenant.

The Owner of the unit shall be responsible for any breach of the declaration or of the Rules Regulations by the tenant (s). Continued violation of the Rules and Regulations resulting in 3 written notices of those violations may result in eviction of the Tenant.

10. MAINTENANCE OF PROPERTY

Each Owner shall keep and maintain his Home and Lot including landscaping in good order, condition and repair, and shall perform promptly all maintenance and repair work within his Home and Lot which, if omitted, would adversely affect the community, other Owners or the Association.

In the event that an Owner fails to maintain his Home and Lot as required to maintain in accordance with the Declaration of Protective Covenants, the Association shall have the right upon thirty (30) days written notice to an Owner, to enter upon the Property for the purpose of performing such maintenance and/or repairs and the expense of collection shall be assessed by the Association against Owner as a Remedial Maintenance Fee.

11. NUISANCE

No obnoxious activity shall be carried on at any Home or Lot or in or about any portion of the community. Nothing shall be done which interferes with the peaceful possession, proper use or quiet enjoyment of the Homes or the surrounding areas.

12. PRESERVES

No planting is permitted in preserves.

No depositing of trash, grass clippings, debris, etc. is permitted in preserves.

13. MAILBOXES AND OTHER DELIVERY BOXES

Until determined otherwise by the Association and the United States Postal Service, mailboxes shall not be installed without the prior written consent of the Association, which consent may be withheld based on purely aesthetic reasons.

14. SWALES

No Owner shall plant any trees or shrubs or the like in or on a swale area, nor shall any Owner alter the slope of the swales or take any other action which may impede the drainage system and the flowage of water.

15. CLOTHESLINES

No clotheslines or clothes drying on any Lot, which is visible from outside of such Lot, shall be undertaken or permitted on the Subject Property.

16. FINES / VIOLATIONS / HEARINGS

Any violation will be fined after two written notices based on the current Fining amendment. Violation Fine: Maximum violation Fine can start at \$100.

An offending member may request, in writing, a Hearing before the board of Directors and/or the Fining Committee within 10 days of receipt of Notice of compliance. The Board's and/or the Fining Committee's action on this Hearing will prevail as its final decision.

17. SALE OF HOMES

Owners shall be required to notify The Management Company or the Board of Directors of their intention to sell their home. A copy of the closing statement and the Warranty Deed for the new Owners must be fax'd or delivered to the Management company immediately following the closing.

18. PARKING AND VEHICULAR RESTRICTION

Resident parking is restricted to the resident's driveway and garage unless the HOA shall grant permission, in writing, to park elsewhere. Vehicles parked in a driveway shall not extend onto the street, sidewalk or grass.

No parking is permitted on the sidewalks, grass or swales.

No commercial vehicle of any kind shall be parked overnight on any portion of the subject property.

No inoperable or unlicensed vehicle, boat, boat trailer, bus, camper, recreational vehicle or mobile home shall be permitted to park within the community at any time unless fully enclosed within a closed garage. Vehicles and other equipment may only be operated by those properly licensed to do so.

No repair work to any type of motor vehicle, boat or boat trailer shall be conducted on community property other than very minor repairs.

Operation of golf carts, go-carts and other non-licensed or non-registered vehicles shall be prohibited in the community except when used for transportation of disabled persons or maintenance by the community maintenance companies.

**Villaggio Homeowners Association
Board of Directors**

**AMENDMENT TO THE
RULES AND REGULATIONS OF
BOCA PINES HOMEOWNERS' ASSOCIATION, INC.
D/B/A VILLAGGIO OF BOCA RATON**

VEHICLE STANDARDS: RESTRICTED VEHICLES; TRUCKS. In order to maintain the high standards of the COMMUNITY with respect to residential appearance, the following vehicle standards and restrictions will apply to all vehicles in Boca Pines Homeowners' Association, Inc. d/b/a Villaggio of Boca Raton.

(1) Vehicle Standards. All vehicles, including all automobiles, parking within Villaggio of Boca Raton, will maintain bodies free of major rust, be properly painted, clean, and kept in a lawful state of repair. The Board of Directors shall have the sole discretion to make the determination as to whether a vehicle violates this standard.

(2) Restricted Vehicles. The following vehicles are strictly prohibited from parking on the Common Properties, roads and driveways:

(a) Commercial vehicles of any kind. For the purpose of this restriction, a commercial vehicle shall mean any vehicle containing outside lettering on any such vehicle designating a business of any kind. The prohibition of parking shall not apply to the temporary parking of commercial vehicles for pick-up, delivery and other commercial services rendered to and on behalf of the residents of Villaggio of Boca Raton

(b) Except as provided in Section 3 herein, trucks of any kind.

(c) Recreational vehicles, motor homes or campers of any kind. For the purpose of this restriction, a recreational vehicle or motor home shall be a vehicular portable structure which is built on a chassis, and is commonly used as a temporary dwelling for travel, recreation or vacation.

(d) Boats or canoes of any kind.

(e) Trailers of any kind.

(f) Vehicles of any kind which are under repair, abandoned, unlicensed or inoperable.

(g) Vehicles which are not routinely used for family or personal use and are subject to sale.

(3) Trucks. Certain small, compact, non-commercial pick-up trucks will be permitted within Villaggio of Boca Raton, provided they meet the following criteria:

(a) The overall vehicle length may not be over 225 inches.

(b) The overall vehicle width may not be over 72 inches.

(c) The overall vehicle height may not be over 85 inches.

(d) Suspension components and tires may not be altered to be higher than the original manufactures specifications. It will be the owners' responsibility to provide to the Association, upon request, original manufacturers' specifications. If the owner cannot provide these specifications, the Board of Directors, at their sole option, may declare the truck to be prohibited.

(e) The vehicle must have four wheels and four wheels only. No dual wheels are permitted.

(f) The vehicle may not have a flat bed, nor shall it have a wooden or a hand-made body.

(g) Tonneau covers are allowed, provided they are of commercial manufacture and properly fitted. No items of any kind shall be left exposed in any permitted truck. No tarpaulin of any kind shall be used to cover the body or contents of a truck while parked in Villaggio of Boca Raton

(h) Permanently mounted storage chests are allowed, provided they are of commercial manufacture and do not exceed bed width.

(i) Toppers are allowed provided they are of commercial manufacture, do not exceed the maximum height and width limits provided herein and do not place the truck in the recreation vehicle, camper or motor home category.

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December 22, 2008

To: All Homeowners and Guests in Palmetto Park Woods Subdivision

Fr: The Board of Directors of Palmetto Park Woods Homeowners' Association

Re: Newly Adopted Amendment of Palmetto Park Homeowners' Declaration of Covenants and Restrictions

Please be advised that in accordance with the original Declaration of Covenants and Restrictions affecting all of the lots in the Palmetto Park Woods Subdivision, at least two-thirds (2/3) of the Owners of the thirty-five (35) lots in the subdivision have approved an Amendment of Article VIII entitled "Restrictions" by adding a new Section 16, which has been duly signed by the President and Secretary of the Palmetto Park Woods Homeowners' Association, Inc. and recorded at 11:57 a.m. today in OR Book 23004, at Pages 201-203 of the Public Records of Palm Beach County, Florida.

Section 16. USE AND OCCUPANCY AS SINGLE FAMILY DWELLING.

A. This Section is adopted in order to:

- (1) Preserve the peace, tranquility, safety and quiet enjoyment of each residential occupant of Palmetto Park Woods;
- (2) Maintain the aesthetic value and market value of each parcel of property located within Palmetto Park Woods; and
- (3) Provide a remedy of temporary and/or permanent injunctive relief and/or monetary damages against any Owner or other person who violates the restrictions set forth in this Section 16.

B. Definitions:

- (1) The term "Residence" includes any portion of the lot owned by the Owner;
- (2) The term "Occupancy" or "Occupied" means to be physically present at a Residence, common area or street within the Palmetto Park Woods subdivision for a total period of four or more hours in any consecutive twenty-four hour period. The presence of a Third Party's motor vehicle or motorcycle at a Residence or upon any portion of the common area and/or upon Via Emilie shall be proof of Occupancy.
- (3) The term "Third Parties" means any person or persons not related by blood or marriage to the Owner and any person not in a monogamous committed relationship with the Owner, regardless of whether or not such person is an invited guest of the Owner or Occupant of the Residence;
- (4) The term "Rent" includes any oral or written agreement, whether or not entered into with the knowledge and/or consent of the Owner, which results in any Third Parties sleeping within the residence and/or placing and/or storing any

personal property of Third Parties within or upon the Residence, whether or not for any consideration whatsoever.

C. Effective fourteen (14) days from the date of recording of this Amendment in the Public Records of Palm Beach County, Florida, each Owner, as defined in Article I, paragraph "D", of the Declaration of Covenants and Restrictions for Palmetto Park Woods Homeowners' Association, Inc., shall not permit the following activity in or upon the residence of the Owner:

(1) In the event that the Owner is not current in the payment of any assessment due the Association by the Owner or predecessor in title of the Owner, the Owner or any agent and/or family member of the Owner shall not Rent any portion of the Residence and/or shall not allow any portion of the Residence to be Occupied by any Third Parties whomsoever.

(2) While any lawsuit is pending in the Courts of this State to foreclose any Residence, regardless of the status of the lawsuit, the Owner of that Residence shall not allow any portion of the Residence to be occupied by any Third Parties whomsoever and/or the personal property of Third Parties.

(3) No more than four (4) motor vehicles, as defined in Section 316.003(21), Florida Statutes (2008) shall be parked upon the Residence so as to be visible to any other Owner; each of these motor vehicles shall only be permitted to park upon the paved driveway of the Owner's Residence. No more than one motorcycle may be parked at a Residence and then only within an enclosed garage area not visible to any other Owner. Bicycles shall be parked within the enclosed garage. All rules and regulations of the Association concerning the parking of motor vehicles and motorcycles on Via Emilie or any of the common areas of the Association are hereby incorporated by reference.

(4) In addition to any other remedies provided in this Section 16 and/or by law, the Association may levy a fine of \$100.00 per day against the Owner and, separately, against any Third Party acting in violation of any of the provisions of Subsection C.(1), C.(2), and C.(3).

D. Should any violation of any of the provisions of Subsection "C" of this Section 16 occur, any Owner, group of Owners and/or the Association shall have the right to enforce any of the provisions of Subsection "C" of this Section 16 against any Owner or Third Party by the filing of a lawsuit for temporary and/or permanent injunctive relief and/or damages. At any hearing or trial of the issues in the suit:

(1) It shall only be necessary that proof of any violation of this Section 16 be made by a preponderance of the evidence;

(2) Irreparable harm shall be presumed from any violation of any portion of Section 16;

(3) In the event temporary injunctive relief is sought, and the Court determines that such relief should be granted, a bond in no greater sum than \$1,000 shall be required from the party to whom the temporary injunctive relief is granted.

E. In the event suit, counterclaim or third party claim is filed by the Association to enforce any rights, including but not limited to temporary and/or permanent injunctive relief and/or damages under this Section 16, the prevailing party in such action shall be entitled to an award of reasonable attorney's fees and costs at the trial and appellate level.

THE ABOVE RESTRICTIONS BECOME EFFECTIVE JANUARY 5, 2009.

Please note Section 720.305(1)(b) and (d), of the Florida Statutes, which read: **Obligations of members; remedies at law or in equity; levy of fines and suspension of use rights.** (1) Each member and the member's tenants, guests, and invitees, and each association, are governed by, and must comply with, this chapter, the governing documents of the community, and the rules of the association. Actions at law or in equity, or both, to redress alleged failure or refusal to comply with these provisions may be brought by the association or by any member against: (b) A member; (d) Any tenants, guests, or invitees occupying a parcel or using the common areas.

THE ABOVE RESTRICTIONS WILL BE UNIFORMLY ENFORCED.